

Chapter VII

International Law and Human Rights

“Emphasis must be laid on man’s obligations and duties towards his fellow beings as the principle means of securing his own rights, freedom and privileges, for they are the obverse and reverse of the same coin. To the degree to which each of us fulfills and discharges his own duties and obligations towards his fellow beings, he promotes the climate in which human dignity, freedom and equality may flourish and achieve consummation.”

Muhammad Zufralla Khan
Islam and Human Rights

Chapter 7 Objectives- International Law and Human Rights

1. Introduce our members to the concepts of national and international law, using the reading by Finnis.
2. Introduce the ideas behind the drafting of the Universal Declaration of Human Rights, using the readings by Glendon and Khan.
3. Historical grounding for the idea of human rights and their origin in the dignity of the human person and a critique of the human rights movement are given in the readings by Glendon and Carozza.
4. In training members for advocacy there are three sections:
 - a. A crucial language study to be able to identify troublesome language in legal documents and resolutions at the United Nations, European Union, and all levels of government.
 - b. The resolutions and Youth Forum proposals from the Cairo and Beijing +5 Conferences as case studies of the previous section's information.
 - c. WYA declarations.

Readings

Section I – 1.susret

1. John Finnis, *Priority of Persons – Prvenstvo osoba* ...305
2. *Muhammad Zufrallah Khan, *Introduction to Islam and Human Rights- izborni tekst za one koji žele znati više** ...317
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4. Jacques Maritain, *Introduction to the 1948 UNESCO Philosophers' Report* ...329
5. Mary Ann Glendon, *Foundations of Human Rights: Unfinished Business* ...334

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Questions

1. Finnis argues that law is based on the relationship between persons. He also argues that this provides us with the only rational, or non-arbitrary basis for the development of legal norms that limit, direct, and condition the actions of individuals under the law. Is this argument valid? Can there be valid legal norms that are not based on an understanding of the dignity of the person? If so, what would be the basis for the development of these norms? If not, why not?
2. Is there evidence that the UDHR represents a view of the dignity of the person that is found and respected in all cultures? Is the Declaration Universal, as it claims, or is it a product of western ideals and experiences?
3. Read through the excerpted language presented from the Cairo Platform for Action. Using the WYA Declarations, WHO technical language, the Beijing + 5 report and any other documents from this chapter, identify ambiguous language in three or more paragraphs. Provide two or more interpretations for each instance of language you have identified as ambiguous. Propose language that would be more adequate and less ambiguous for each of the statements you have identified.
4. The Cairo Platform for Action is a “consensus” document. This consensus holds moral authority among the member states of the UN, in calling all countries to implement and achieve the targets and goals outlined within the document. 22 Countries, plus the Holy See, placed written reservations on this “consensus” document. Some of the reservations are lengthy, and include reservations on the general interpretation of terms, as well as taking exception to entire paragraphs and sections. What significance do the reservations have for the general acceptance of the Programme of Action? How does this change the aspect of UN documents which are supposed to be consensus documents?

John Finnis
Prvenstvo osoba

Stoga, budući da je sve pravo stvoreno poradi ljudskih bića, prvo bismo trebali govoriti o statusu osoba.¹

Justinijan, *Digesta* 1,5,2

Poznavanje prava malo vrijedi ako previđa osobe poradi kojih je pravo i stvoreno.²

Justinijan, *Institucije* 1,2,12

Što to znači biti osobom i zašto je važno da to netko jest, pitanja su kojima se opća tumačenja prava više ne bave. No sam pojam prava, postojeće i projicirane stvarnosti duboko i namjerno različite i od anarhije i tiranije, oblikovan je uviđanjem da (i) smo mi ljudska bića svi osobe te da smo u tom pogledu svi jednaki, čak ako i nismo u ničemu drugom; (ii) osobe zadovoljavajuće zrelosti i zdravlja mogu razumjeti i priopćavati što one i druge osobe misle te također mogu namjeravati i odabirati mnoge druge načine ponašanja; te (iii) osobe, njihova dobrobit i namjere imaju važnost kakvu nema ništa drugo što nas okružuje. Ovaj esej skicira neke razloge za dovođenje tih u modernoj pravnoj znanosti prilično zanemarenih pitanja natrag u središte pažnje.

I PRAVO JE „PORADI...”

Hartovo odbacivanje „pozitivističke teze da 'bi pravo imalo ikakvog sadržaja'“ „pozivao se na „prirodnu nužnost“ „minimalnih oblika zaštite osoba, vlasništva i obećanja što su [...] neophodne značajke nacionalnog prava“ „ako ono treba služiti minimalnim ciljevima bića što su ustrojena poput ljudi“.³ „Prirodna“ nužnost te vrste isprva je *razumska* nužnost. Kao što i sam Hart napominje, njegova rasprava o minimalnom pravnom sadržaju⁴ pokušava identificirati „karakteristično *razumsku* poveznicu između prirodnih činjenica i sadržaja zakonskih i moralnih pravila“.⁵ A ta „poveznica“ je „razumska“ s obzirom na „minimalni smisao“ ili „Prirodne ciljeve“ „bića ustrojenih kao što su ljudi“. Racionalnost je stoga ona praktičnog umovanja – umovanja na sljedeći način, npr. želimo preživjeti, no budući da smo ranjivi, a altruizam drugih je ograničen, ne možemo preživjeti bez pravila koja bi drugima zabranjivala slobodno korištenje nasilja; stoga su takva pravila nužna, a druga su bez njih beskorisna.

Iako Hart dovoljno često govori o prirodnim ciljevima ljudskih bića (u množini), njegov službeni popis, kako je dobro poznato, priznaje tek cilj što je netom spomenut - „opstanak“.⁶ Srećom po pravnu znanost, njegov pravi popis minimalnih svrha koje pravu i zakonskom sustavu daju njihov složeni, oblikotvorni smisao, potihlo je proširen. Uključio je ciljeve i svrhe u odnosu

¹ „Cum [...] hominum causa omne ius constitutum sit, primo de personarum statu [...] dicemus“ (kurziv dodan, ovdje i drugdje, osim ako nije navedeno drukčije).

² „Nam parum est ius nosse si personae quarum causa statutum est ignorentur.“

³ H. L. A. HART, *The Concept of Law*, Oxford University Press, Oxford, [1961.], 2. izd. 1994.) 199. Ispuštena riječ je „similarly“, a odnosi se na isti „okvir prirodnih činjenica i ciljeva koji u nacionalnom pravu dopuštaju i ono što je moguće i ono što je nužno“ (*isto*). Postskript se (*isto*, 248-249), čini se, povlači od jasnog i dobro argumentiranog odbacivanja gore opisane „pozitivističke teze“: „[p]oput drugih oblika pozitivizma moja teorija ne tvrdi da je identificirala svrhu ili smisao prava i pravnih sustava kao takvih [...] Ustvari, smatram prilično taštiti tražiti ikakav detaljniji smisao koji pravo kao takvo nudi, povrh toga što pruža vodilje ljudskog ponašanja i standarda kritike takvog ponašanja.“ No *isto*, 251 vraća se na govor o „ciljevima [osim točnosti] koje bi pravo trebalo čuvati“.

⁴ Nazvao je to „minimalnim pravnim sadržajem“, no zapravo je mislio na minimalni sadržaj pozitivnog prava (a koji, budući da je nužan, možemo nazivati prirodnim pravom).

⁵ *Isto*, 193, gdje počinje izlaganje o minimalnom sadržaju: „važno je promotriti kako u svakom slučaju spomenute činjenice daju *razlog* zašto bi, s obzirom na opstanak kao cilj, pravo i moral trebali uključivati određeni sadržaj“ (Hartov kurziv).

⁶ *Isto*, 191. Glede njegova argumenta, vidi moj *Natural Law and Natural Rights*, Oxford University Press, Oxford, 1980., 30-31, 82.

prema kojima ljudi – a osobito Hart i čitatelji koje je očekivao – neke vidove „predzakonskih“ stanja ubrajaju u „greške“, greške na koje je minimalno prikladan odgovor, kako Hart tvrdi, „privlačnost“ pravila što daju moć i „lijeke“ „drugotnih pravila“, ugodnosti i lijekovi što pravo čine onime što ono u svojoj srži jest.⁷

Pravo je stoga poradi ispunjavanja određenih svrha „bića ustrojenih kao što su ljudi“ te Hart govori o ispunjavanju tih svrha kao *smislu* prava. Za Ronalda Dworkina pak, s druge strane, „najapstraktniji i temeljni *smisao* pravne prakse“ glasi: „usmjeravati i ograničavati moć vlasti [inzistirajući da] se silu niti ne koristi niti se od nje suzdržava [...] osim kad to pojedinačna prava i odgovornosti što proistječu iz prošlih političkih odluka glede toga kad je kolektivna sila opravdana dozvoljavaju ili zahtijevaju.“⁸ K tome Dworkin prednost daje određenom shvaćanju tog smisla, „prava kao cjelovitosti“; „pravo inzistira“, smatra on, da kolektivna sila bude dozvoljena pravima i odgovornostima „što proistječu“ iz prošlih odluka, kako bi pravo tako koristilo „društvu“ upravo „osiguravajući neku vrst jednakosti među građanima“.⁹ A prava i odgovornosti „proistječu“ iz odluka političke zajednice jedino ako praksa te zajednice „ne pokazuje samo brigu, već *jednaku* brigu za sve članove“.¹⁰

Tako je prema Dworkinovu shvaćanju *smisao* prava služiti interesima „građana“ ili (podjednako, čini se) „članova skupine“ – i u tome podbacuje, nedostaje mu valjanosti, autoriteta i obvezatnosti te ne uspijeva opravdati prisilu za koju se pretvara da je opravdava. Dworkinovo ograničenje *smisla* na građane ili članove zajednice doima se proizvoljnim. Istina, jedan od njegovih sažetaka stanja jednakosti kaže kako „zapovijed cjelovitosti pretpostavlja da je svaka osoba vrijedna poput bilo koje druge, da sa svakom treba postupati s jednakom brigom“¹¹, te spominje koncept „općih dužnosti koju članovi [neke zajednice] jednako duguju i osobama van nje“.¹² No nijedna takva dužnost nije utvrđena u objašnjenju carstva prava te se u njegovu kontekstu čini da je spominjanje osoba u sažetku ništa više doli drugi naziv za „članove“. Nadalje, za članstvo se kaže da je stvar „genetskih, geografskih ili drugih povijesnih uvjetovanosti prepoznatih *od strane društvene prakse*“.¹³ (Neki elementi američke pravne povijesti kojih se prisjećam u Četvrtom dijelu čine ova ograničenja vrijednima spominjanja.)

Prema tome, u predodžbama *smisla* prava što ih nude Hart i Dworkin postoje razlike koje mnogo govore o samom poimanju prava. Za Dworkina je „osiguravanje“ jednakosti shvaćene neuskладivom sa smatranjem „nekih članova inherentno manje vrijednima od ostalih“¹⁴ središnje za *smisao* i pojam prava. Za Harta je briga za svaku takvu vrst jednakosti, iako „duboko ukorijenjena u *modernom* čovjeku“¹⁵, a *sada* općenito prihvaćena kao izjava ideala očite važnosti u kritici prava¹⁶ ekstrinzična pojmu prava, i pitanje je li takva briga ili kritika glede tog pojma opravdana u njegovoj knjizi „nije moguće ispitati“¹⁷. No kontrast između te dvojice teoretičara ublažen je Dworkinovu primjetljivom nevoljkošću da utvrdi kako je jednakost intrinzična *smislu* prava jednakost svih

⁷ Vidi: *The Concept of Law*, bilj. 3 gore, 28, 41-42, 196-197 (o „ogromnoj i karakterističnoj ugodnosti“ koju podjeljuje ustanovljenje pravila što daju moć, „jedan od velikih doprinosa prava društvenom životu“ i „korak naprijed važan za čovječanstvo kao i izum kotača“); 91-99 (o lijekovima potrebnima za prevladavanje grešaka društvene strukture prvotnih pravila obveze zabranjivanja slobodne upotrebe nasilja, krađe i prijevare); te 155 (o jedinstvu prvotnih i drugotnih pravila kao „srži“ prava)

⁸ Ronald DWORKIN, *Law's Empire*, Harvard University Press and Fontana Press, 1986., 93.

⁹ *Isto*, 95-96.

¹⁰ *Isto*, 200 (Dworkinov kurziv).

¹¹ *Isto*, 213.

¹² *Isto*, 199.

¹³ *Isto*, 201.

¹⁴ *Isto*, 201.

¹⁵ *The Concept of Law*, bilj. 3 gore, 162.

¹⁶ *Isto*, 206.

¹⁷ *Isto*, 206. Uočite kako je u svojoj knjizi *Punishment and Responsibility* (Oxford University Press, Oxford, 1968.) spreman reći stvari poput: [p]ravda se jednostavno sastoji od načela [...] koja (i) sa svima postupaju jednako kao osobama pridajući posebnu važnost ljudskom voljnom djelovanju i (ii) zabranjujući korištenje jednog ljudskog bića na korist drugih, osim u slučaju njegova voljnog postupanja protiv njih.“

ljudskih bića ili svih osoba ili bilo kojeg reda bića prepoznatljivih prije društvene prakse – prakse koja, poput one zakona, definira članstvo kojim su moralna i zakonska prava „dana“.¹⁸

II O PRAVU KAO ONOME ŠTO JE PORADI SVIJU

Na zamisao da prvotni element smisla prava nije tek unaprijeđenje „opstanka“ nego poštivanje i prikladno unaprijeđenje opstanka *svih* ljudskih bića unutar svoje nadležnosti Hart ima jednostavan odgovor, koji neumorno upotrebljava kroz cijelo svoje djelo. „Pravni su sustavi“, podsjeća nas, „dugo izdržali iako su zanemarivali ova načela pravde“.¹⁹ Nadalje, „možemo zamisliti da bi moglo postojati moralno gledište koje pojedince ne stavlja na temelj recipročne jednakosti“.²⁰ Pa, ni činjenice ni logičke mogućnosti nisu u sumnji. No Hartova strategija prikazivanja prava kao neke vrste *razloga* prikladnog da ga se smatra *zajedničkim standardom* za djelovanje potkopava taj odgovor. Baš kao što nevaljali argumenti mjesto u raspravi o argumentaciji zaslužuju samo kao primjeri onoga što, unatoč vanjštini i popularnosti ustvari nije argument, tako se i nerazumnim vrstama prava i pravnih sustava u pravnoj teoriji treba pozabaviti upravo kao primjerima prava koje je razvodnjeno pritocima onoga čemu se pravo *u osnovi protivi*: proizvoljnom vršenju osobne ili moći skupine nad drugim osobama ili skupinama. Dworkin je u pravu kad tvrdi da će „bilo koja potpuna teorija prava“²¹ ići ponad Hartovih eksplicitnih i prešutnih objašnjenja koristi koje pravo razlikuju od naloga moćnih ljudi, te će uključiti upućivanje na jednakost i njene moralne implikacije, „načela pravde, poštenja i proceduralnog zakonitog postupanja“.²² No kao što smo vidjeli, ostavlja po strani pitanje *tko* je jednak te s njime treba postupati kao s jednakim, i prema kome.

Rimsko pravo, koje je dugo izdržalo premda je zanemarivalo neka načela pravde, davalo onima koji su ga učili i prakticirali bolje objašnjenje smisla prava. Početna rečenica *Institucija* nas upućuje na njega; to je pravda koju se razumije upravo kao raspoloživost za postupanje prema određenoj vrsti cilja: „Pravda je stabilna i trajna voljnost *dati svakome ono što mu pripada*“.²³ Tko je taj „svatko“? Birksov prijevod sasvim ispravno prevodi ovaj objekt kao „priznati svim ljudima njihova prava“, jer zaključne riječi uvodnog dijela (naslova 1 – 3 prve knjige) kažu nam da pravo postoji poradi osoba, a sljedeća rečenica, što otvara cijelu raspravu o pravu osoba, izlaže osnovnu poziciju: svi su ljudi osobe.²⁴ Ropstvo je otvoreno definirano kao „nečija“ podložnost tuđemu vlasništvu i gospodarenju, „protivno prirodi“²⁵; doista, točnije rečeno, „protivno prirodnom pravu/pravima“.²⁶ „Jer po prirodnom su pravu/pravima, od početka svi ljudi rođeni slobodni.“²⁷

Potrebe pravde za osobe su tako u gotovo istom dahu i utvrđene i zanemarene. Ni ne pokušava se nijekati da su robovi osobe te su svojim gospodarima jednaki po naravi. Ustanovu se ne predstavlja kao nešto opravdano, već kao životnu činjenicu i proizvod ratne arbitraže – čiste moći. Jasno da iskrenost ima svoja ograničenja; ovdje je zaklonjena činjenica da se ropstvo kao pravna ustanova održava čistom moći dugo nakon ratnog zarobljeništva te je nametnuto osobama koje nikad nisu sudjelovale u ratu. Smisao zakona se iznosi samointerpretirajućom doktrinom rimskog prava, no njegov se smisao ne provodi neiskrivljenom praktičkom razboritošću.

Smisao zakona – ili, bolje rečeno, poradi koga ono jest – u prvom je članku Opće deklaracije o ljudskim pravima (1948.) određen usvajanjem frazeologije rimskih pravika: [s]va ljudska bića rađaju se slobodna i jednaka u dostojanstvu i pravima“. Subjekt prvog članka, „sva ljudska bića“ izjednačen je sa „svim članovima ljudske obitelji“ i „ljudskom osobom“ iz Preambule,

¹⁸ V. Ronald DWORKIN, *Life's Dominion*, Alfred A. Knopf, London; Harper Collins, London, 1993.)

¹⁹ *The Concept of Law*, bilj. 3 gore, 206.

²⁰ *Isto*, 165.

²¹ V. *Law's Empire*, bilj. 8 gore, 110.

²² V. *Isto*, npr. 225.

²³ *Digesta*, 1,1. par.; *Institucije* [nadalje: *Inst.*] 1,1 par.

²⁴ *Inst.* 1,2,12; 1,3,1: „[g]lavna je oznaka osoba u pravu sljedeća: svi su ljudi ili slobodni ili robovi“ (summa itaque divisio de iure personarum haec est, quod omnes homines aut liberi sunt aut servi).

²⁵ *Inst.* 1,3,2.

²⁶ *Inst.* 1,2,2.

²⁷ *Isto*: *servitutes [...] sunt iuri naturali contrariae – iure enim naturali ab initio omnes homines liberi nascebantur.*“

tako da su oznake preostalih članaka, ²⁸ „svi“ i „nitko“, jasne. Tako su sva ljudska bića ta koja su „jednaka pred zakonom“ te imaju pravo na „jednaku zaštitu“ (članak 7); te „svatko ima pravo da ga se svugdje pred zakonom prizna kao osobu“ (članak 6).

III O PRAVILIMA KAO ODNOSIMA MISLEĆE OSOBE S DRUGIM OSOBAMA

Što je vladavina prava? Svakako je nije dobro definirati kao „nakupinu znakova koji iskazuju volju“, kao što je to Bentham pretpostavio. Zaista ga ne treba definirati kao bilo kakvu nakupinu znakova, jer zakonska pravila nisu ništa drugo doli posvjedočena, a u nekim slučajevima i performativno *uzrokovana* nakupljanjem takvih znakova. Niti je to u konačnici značenje skupine pravila ili čina označavanja, jer iako značenje ostaje stalnim, valjanost i obvezatnost mogu biti privremene. U svom općem objašnjenju prava pokušao sam odgovoriti na to pitanje:

pravno mišljenje (tj. pravo) u red ljudske interakcije donosi preciznosti i predvidivosti koliko već može, koristeći posebnu tehniku: tretiranje (obično evidentiranih) prošlih događaja (bilo donošenjem zakona, presudom ili bilo kojim od mnoštva načina vršenja javne i privatne „moći“) kao onih koji *sada* pružaju dovoljan i isključujući razlog za postupanje na način kojim smo *onda* „opskrbljeni“. U važnom smislu „postojanje“ ili „valjanost“ zakonskog pravila možemo objasniti kažući li da upravo taj odnos, ta trajna važnost „sadržaja“ te prošle pravne odluke pruža razlog za sadašnje odlučivanje i postupanje na način koji je tada određen i omogućen.²⁹

To je objašnjenje, prema mom mišljenju, pouzdano. No doći ćemo još bliže srži stvari kažući li da je pravilo odnos između osoba. Reći da vladavina pozitivnog prava postoji znači reći da (i) njegovi subjekti (oni kojima dodjeljuje dužnosti ili moć, itd.) stoje u određenom odnosu prema redu osoba koje će – i čiji interesi – biti zahvaćene prianjanjem pravnih subjekata svojim dužnostima ili vršenjem moći, itd., te da (ii) ti pravni subjekti u tom odnosu prema osobama tog reda stoje zato što oni (a na određen način i osobe čijim interesima tako treba služiti) stoje u određenom odnosu prema osobi/osobama čiji „prethodni pravni čini“ tako pružaju „razlog za sadašnje odlučivanje i postupanje na način koji je tada određen i omogućen“.

Zašto stoga dati eksplanatorno prvenstvo odnosu između osoba? Pa, ništa manje od priznavanja stvarnosti i vrijednosti („dostojanstva“) drugih osoba, kao onih koji su mi jednaki u stvarnosti i vrijednosti, neće dostajati za objašnjenje najelementarnijih stvari za koje pravo traži da na njih obratim pažnju: njegova tvrdnja da *usmjerava* određene moje izbore, da u određenim pogledima poništava moje sebične interese, da određuje uvjete po kojima će mi pružiti pomoć u postizanju mojih ciljeva, i tako dalje.

Povijest pravne znanosti od Benthama je, u nekim važnim pogledima, povijest neuspjeha i regresije. Benthamovsku strategiju opisivanja, analiziranja i izlaganja prava kao neke vrste mehanizma koji bi spominjanjem isključivo njegova porijekla u „htijenju“ – drugim riječima, isključujući svako spominjanje njegova smisla (tj. njegova obrazloženja) – trebao biti sasvim razumljiv nenadmašivom je upornošću i domišljatošću tijekom više od polovice dvadesetog stoljeća propagirao Kelsen. Njen *dénouement* (kulminacija, op. prev.) je bio spektakularni debakl u kojem je Kelsen, s pravom priznajući neuspjeh svoje pravne filozofije od 1911. do 1960.³⁰ da objasni ili barem dosljedno opiše valjanost prava, njegovu normativnost, njegovu elementarnu česticu (normu) i njenu dosljednost, presjekao sve veze između prava i praktičke razboritosti, prigrlio čak i najotvorenije proturječje između pravnih normi³¹, zaniijekao mogućnost pravnog promišljanja čak i

²⁸ Postoji jedna iznimka, čl. 16, koji kao svoj subjekt ima „punoljetne muškarce i žene“, kako bi označio da je brak između osoba suprotnog spola (roda).

²⁹ *Natural Law and Natural Rights*, bilj. 6 gore, 269 (kurziv u izvorniku).

³⁰ O fazama Kelsenova rada, v. npr. Stanley L. PAULSON, *Four Phases in Hans Kelsen's Theory? Reflections on a Periodization*, u: *Oxford Journal of Legal Studies*, 18 (1998.), 154-66, na 161.

³¹ Hans KELSEN, *General Theory of Norms* (prev. Michael Hartney), Oxford University Press, Oxford, 1991., 214 („[Š]to se pak tiče sukoba između općih normi, nije slučaj da – kao što sam tvrdio u svojoj *Čistoj teoriji prava* – da sukob normi koji ne može biti razriješen načelom *Lex posteriori derogat legi priori* nema smisla [...] Svaka od tih dviju normi ima smisla i obje su valjane.“), 223-225.

obuhvaćanjem nekontroverznog primjera pod odgovarajuću normu³², te predložio čistu fikciju kao „znanstveno“ objašnjenje valjanosti.³³ Kelsenova cjeloživotna odbojnost prema bilo kakvom pribjegavanju ili spominjanju praktičke razboritosti da bi se razumjelo, opisalo i protumačilo pravo postalo je u konačnici bezglavim bijegom. Kada se sve razmotri, riječ je o odbojnosti prema razumijevanju prava kao skupine implikacija toga kako vidimo smisao služenja – uvažavanja i podupiranja – drugih osoba, te tako i njihovih interesa i dobrobiti, kao nama jednakih u dostojanstvu i vrijednosti. No smatram da ne postoji drugi način razumijevanja pravnih tvrdnji i smjernica, njihovih temelja i porijekla, njihove snage, granica i patoloških oblika.

IV POSLJEDICE PRAVNIH PROMIŠLJANJA BEZ PRIZNAVANJA OSOBA NJEGOVIH CILJEM

Kelsenovo odbijanje tretiranja ljudskih bića te njihovih interesa i dobrobiti kao smisla prava, odbijanje koje analitička pravna znanost od Bentham nadalje općenito dijeli, najočitije je u svom tretiranju pravnih osoba, ponajprije „fizičkih (prirodnih) osoba“.³⁴ Reći da ljudsko biće A ima prava „znači samo da je određeno *ponašanje* pojedinca A objekt zakonskog prava [...] da je određeno ponašanje pojedinca A, na određen način, sadržaj pravne norme“.³⁵ Slično je, naravno, i s dužnostima koje A ima. Stoga: [U] pravnim promišljanjima čovjek nas zanima samo utoliko ukoliko njegovo *ponašanje* ulazi u sadržaj pravnog reda.“³⁶ Osoba postoji samo utoliko ukoliko 'ima' dužnosti i prava“ (a ta se prava tiču, sjetimo se, samo ponašanja te osobe); „bez njih osoba ne postoji na nikakav način.“³⁷ Dakle:

To da su čovjek i osoba dva posve različita koncepta možemo smatrati opće prihvaćenim rezultatom analitičke pravne znanosti [...] fizička (prirodna) osoba je uosobljenje skupa pravnih normi koje uspostavljajući dužnosti i prava sadržana u ponašanju jednog te istog ljudskog bića reguliraju ponašanje tog bića. Odnos između takozvane fizičke (prirodne) osobe i ljudskog bića s kojim se prethodna pogrešno poistovjećuje sastoji se u činjenici da se te dužnosti i prava koja podrazumijevamo pod konceptom osobe sva odnose na ponašanje tog ljudskog bića.³⁸

Ukratko, pravna misao kao takva ni o jednoj ljudskoj osobi ne zna ništa osim ponašanja te ljudske osobe kako je određeno u pravnim normama, i nema za svoju prvotnu ili bilo kakvu brigu interese i dobrobit te ili bilo koje druge osobe.

U desetljećima Kelsenova najsnažnijeg utjecaja suci su se suočavali s praktičkim problemima poistovjećivanja prava i pravâ nakon što se revolucija okrenula Kelsenovu objašnjenju revolucionarnog prijelaza. Nisu nalazili smjernica, već nešto materijala za opravdavanje zaključaka na drukčijim temeljima.³⁹ Tako se pozivalo i na Kelsenovo tretiranje osobe kako bi se opravdalo sudsko odreknuće od takve redovne i presudne brige oko interesa i dobrobiti stvarnih ljudi.

Dakako, takvo se odreknuće može s vremena na vrijeme pojaviti – a i pojavljivalo se – bez pomoći ili ohrabrenja analitičke pravne znanosti. Među najupečatljivijim je primjerima opravdano zloglasna presuda Vrhovnog suda Sjedinjenih Država u slučaju *Scott v. Sandford* (1857.), koja je glasila da pripadnici „afričke rase“ dovedeni u Sjedinjene Države ili ondje rođene (bilo da su

³² Isto, 232-238.

³³ Isto, 256 („Pretpostavljanje osnovne norme – primjerice, [...] osnovne norme pravnog reda, „Svatko se mora ponašati kako povijesno prvi ustav određuje“ – ne samo da se protivi stvarnosti, budući da ne postoji takva norma poput značenja trenutnog voljnog čina, već je i proturječna [...] Kognitivni cilj osnovne norme [...] moguće je doseći jedino pomoću fikcije.“).

³⁴ Hans KELSEN, *General Theory of Law and State* (na engl. prev. Anders Wedberg), Harvard University Press, Cambridge, MA, 1945., 95.

³⁵ Isto, 94.

³⁶ Isto

³⁷ Isto

³⁸ Isto, 94-95.

³⁹ V. FINNIS, Constitutional Law, u: *Annual Survey of Commonwealth Law* (1967.) na 83, 91-95, (1968.) 75,112, (1969.) 76-77.

postale slobodnima ili ne) nisu građani Sjedinjenih Država te ih Kongres nikada ne može učiniti takvima, čak ni svojom neprijepornom moći naturaliziranja.⁴⁰ Odluka je počivala na činjenici da je u vrijeme Deklaracije o neovisnosti (1776.) i proglašenja Ustava (1789.) javno mnijenje – dovoljno stvarno iako Sud znatno preuveličava njegovu jednodušnost – smatralo da bi se „crnca moglo opravdano i zakonito svesti na roba“, kao „biće nižeg reda“.⁴¹ U vrijeme nacrti i prihvaćanja Ustava, „ni red osoba koje su dovedene kao robovi, ni njihovi potomci, bilo da su postali slobodni“ nisu imale nikakvih „prava ili povlastica doli onih koje bi im oni s vlašću ili pak Vlada odlučili dodijeliti“.⁴² A „dužnost Suda je [...] upravljati [sredstvom koje su načinili] onako kako smo ga zatekli, prema njegovoj pravoj nakani i značenju u vrijeme kad je prihvaćen.“⁴³ Tako je korjenit neuspjeh suda bio pristupanje svojoj dužnosti provođenja pravde prema zakonu bez uviđanja da su zakoni i cijeli pravni pothvat poradi osoba te da namjere osnivača stoga treba tumačiti – ne kao što je to Sud činio, da bi se podupiralo svoje pozadinske predrasude (od kojih se Sud odvajao) prema ljudima s kojima su željeli postupati kao s pukim vlasništvom, nego – u prilog osnovnih interesa i dobrobiti svake osobe unutar svog djelokruga koliko je god moguće bez proturječja ustavnim odredbama.

Postkelsenovsku inačicu *Dred Scotta* možemo pronaći u presudi Newyorškog prizivnog suda u slučaju *Byrn v. New York City Health and Hospitals* (1972.). Raspravljajući o statusu djece prije rođenja, Sud kaže:

Što je pravna osoba, to je na zakonu da kaže, uključujući naravno i Ustav. To pak jednostavno znači da pri dodjeljivanju pravne osobnosti nekoj stvari pravo toj stvari dodjeljuje prava i povlastice pravne osobe (npr. Kelsen, *General Theory of Law and State*, 93-109; Paton, *Jurisprudence* [3. izd.], 349-356, posebno 353-354 glede prirodnih osoba i nerođene djece; Friedmann, *Legal Theory* [5. izd.], 521-523; Gray, *The Nature and Sources of the Law* [2. izd.] 2. poglavlje). Proces je doista kružan, zato što je definicijski. Treba li pravo dodjeljivati pravnu osobnost političko je pitanje koje se u većini slučajeva prenosi na zakonodavstvo, podložno naravno Ustavu onako kako je „pravno“ načinjen [...] Poanta je da je pitanje treba li pridodati pravnu osobnost politička odluka, a ne pitanje biološkog ili „prirodnog“ podudaranja.⁴⁴

Presuda zaključuje: [p]ostoje dakle stvarni problemi u vezi ove parnice, no oni nisu pravni ili prikladni za sudstvo. Radi se o pitanjima van prava, osim ako zakonodavstvo ne bi odredilo drukčije.⁴⁵ Nalik pozitivizmu bez pretpostavki kakav je Vrhovni sud gajio u *Dred Scottu*, ova newyorška presuda nagoviješta očitovanje Vrhovnog suda što je uslijedilo šest mjeseci kasnije, u slučaju *Roe v. Wade* (1973.), da djeca *en ventre sa mère* (franc. „u majčinoj utrobi“, op. prev.) nisu osobe „unutar značenja Četrnaestog amandmana“.⁴⁶ Promišljanje Suda glede tog očitovanja jednostavno navodi korištenja riječi „osoba“ u Ustavu, napominje da „nijedno, s bilo kakvom sigurnošću, ne ukazuje na to da ima bilo kakvu moguću prenatalnu primjenu“, dodaje (prilično pogrešno)⁴⁷ da su „tijekom većeg dijela devetnaestog stoljeća prevladavajuće zakonite abortivne prakse bile daleko slobodnije negoli su danas“, te zatim jednostavno kaže, te dvije činjenice „uvjeravaju nas“ glede zaključka.⁴⁸

Ono što u ovim slučajevima vidimo značajan je neuspjeh pravnog promišljanja, intelektualne i moralne odgovornosti usprkos najosnovnijem cilju i smislu prava: službi osobama.

⁴⁰ 60 US 393 na 417, 420, prema Taneyju, glavnom sucu Suda (7: 2).

⁴¹ 60 US na 407, prema Taneyju.

⁴² 60 US na 405, prema Taneyju.

⁴³ Isto.

⁴⁴ 286 NE 2d 887 na 889, prema Breitelu, sucu Suda (5: 2).

⁴⁵ 286 NE 2d na 890.

⁴⁶ 410 US 113 na 157, prema Blackmunu, sucu (7: 2). Na 162 Blackmun navodi sasvim istim riječima, iako bez da je to dao do znanja, cijelu rečenicu iz Byrna na 888.

⁴⁷ V. Finnis, "Shameless Acts" in Colorado: Abuse of Scholarship in Constitutional Cases, *Academic Questions*, Fall 1994. 10-41 na 1-18, 36-37.

⁴⁸ 410 US na 157-158.

Tu gdje pravna misao trebalo biti najpotpunije i najopreznije primijenjena nailazimo na osoran ukaz. Neuspjeh i osornost nisu svojstveni samo slučajevima u kojima se taj sud bavio nerođenima. 1886. je od Vrhovnog suda zatraženo da razriješi pitanje je li odredba Četrnaestog amandmana koja svakoj saveznoj državi zabranjuje uskratiti jednaku pravnu zaštitu svakoj *osobi* unutar svog djelokruga primjenjiva i na korporacije. Njena presuda u slučaju *Santa Clara County v. Southern Pacific Railroad Co.* sadrži sljedeći predgovor: [s]ud ne želi slušati raspravu o tom pitanju [...] Svi smo mišljenja da je tako.⁴⁹ Kao što su suci Black i Douglas 1949. primijetili, „nije ponuđena nikakva povijest, logika ni razlog koji bi podržavali takvo gledište, niti je rezultat tako očit da bi izlaganje bilo nepotrebno.“⁵⁰ No premda ta drukčija prosudba sudaca Blacka i Douglasa koristi snažne razloge protiv tog „rezultata“, razvijajući razloge koje je mnogo godina ranije u Black koristio u jednoj drugoj presudi⁵¹, ni sam Sud ni bilo koji sudac koji je podržavao rezultat nikada nije dodao nijednu jedinu rečenicu kojom bi se opravdavalo ukaz iz 1886. Možda i ne bismo trebali biti iznenađeni, iako imamo pravo biti zaprepašteni, da nijedan sudac nikad nije pokušao pomiriti „zaključak“ iz *Roea* s „rezultatom“ iz *Santa Clara*.

Kao što Black i Douglas – nakon što su pokazali proizvoljnost naizmjeničnih odluka koje je Sud donosio glede primjene nekih korištenja „osobe“ i „građanina“ iz Četrnaestog amandmana na korporacije, te zdravim razumom došli do spoznaje kako se zaštita iz tog amandmana odnosi na ljudska bića, prirodne, a ne umjetne osobe – napominju, „[p]ovijest je pošla drugim putem.“ Čemu međutim dodaju da za Sud nije kasno da poništi svoju pogrešku glede „pitanja od ključne važnosti za stanovništvo ove države“.⁵² U većini država SAD-a⁵³ zakonodavni i sudski autoriteti sve više prihvaćaju da nerođeno dijete ima pravo na zaštitu i pravni lijek pri deliktu čak i ako se rodi mrtvo, a isto tako i na zaštitu kriminalnog prava. Taj razvoj, iako ga ustavna materinja prava proglašena od strane Vrhovnog suda u *Roeu* prilično ograničavaju, označava povlačenje od jednostavnog odbijanja da se uzme u obzir stvarnost osobnog postojanja prije rođenja.

V O PRIRODNIM I UMJETNIM OSOBAMA U PRAVU

U realističkoj moralnoj, političkoj ili pravnoj analizi ljudskih asocijacija i njihovih postupaka, „osobnost“ je metafora koja odvlači pozornost, jer radi se o metafori koja je uvijek potezana između svoja dva povijesna izvora. S jedne strane imamo riječ *persona* kao masku; to odgovara bezbrižnom pravnom pripisivanju pravne osobnosti *bilo čemu* što se zamišlja kao subjekt (tema) pravnih odnosa, osobito imovini i/ili spornim odnosima: idolima, sredstvima, česticama imovine uz obalu, Kruni, i tako dalje. S druge strane imamo *personu* kao individualnu supstanciju razumske naravi⁵⁴; tome ne odgovara ništa (osim metaforički) u mnogim poretcima ljudske interakcije i udruživanja koje nazivamo skupinama⁵⁵, ništa osim ljudi koji su članovi. Pa ipak, postoji poveznica između ova dva izvora i pola značenja riječi „osoba“, jer glumčeva maska jest ili stvara pretpostavljeni identitet. No biće razumske naravi može, s dovoljno zdravlja i zrelosti, donositi odabire (jer razumije različite vrste koristi i različite puteve do jedne te iste koristi), a donoseći odabire oblikuje svoj karakter/identitet, počinje imati, te u tom smislu i zadobiva, osobni identitet

⁴⁹ 118 US 394 na 396.

⁵⁰ *Wheeling Steel Corporation v. Glander*, 337 US 563 na 577.

⁵¹ *Connecticut General Legal Insurance Co. v. Johnson*, 303 US 77 (1938.) na 85-90.

⁵² 337 US na 580, 581.

⁵³ V. npr. Clark D. FORSYTHE, *Human Cloning and the Constitution* (1998.) 32 *Valparaiso University Law Review*, 469 na 497-502.

⁵⁴ „*Persona est rationalis naturae individua substantia*“. BOECIJE, *De Duabus Naturis*, 3. pogl., Migne, *Patrologia Latina* 64, 1343; v. Toma AKVINSKI, *Summa Theologiae*, pars I, q. 29, a. 1.

⁵⁵ Ovdje i na drugim mjestima u ovom eseju riječ „skupina/grupa“ koristim u drugom, određenijem smislu rođ dvoznačnog pojma, čija su dva osnovna značenjska pola: a) razred ili kategorija, bez obzira na kohezivnost, suradnju ili interakciju, npr. sve žene u Pakistanu (koje se za potrebe čl. 1A(2) Konvencije o statusu izbjeglica (1951.) smatra „posebnom društvenom skupinom“). R. v. *Immigration Appeal Tribunal, ex parte Shah* (1999.) 2 WLR 1015; te b) nekoliko osoba koje svoju aktivnost tijekom mjerljivog vremenskog raspona koordiniraju interakcijama s pogledom na zajednički cilj (v. Tony HONORÉ, „What is a Group“, u njegovoj *Making Law Blind: Essays Legal and Philosophical*, Oxford University Press, Oxford, 1987.; FINNIS, *Natural Law and Natural Rights*, bilj. 6 gore, 150-153).

(svoj karakter). Beba stara jedan dan ima – u korijenu, iako još ne u stvarno iskoristivom obliku – tu sposobnost izabiranja (s takvim samoodređujućim, neprenosivim učincima). Miš nema tu sposobnost, bilo da je zrele dobi ili star jedan dan, iako još kao jedan dan stari embrij ima korijensku sposobnost trčanja, što pak nije slučaj sa žirem ili hrastovom mladicom.

Hart preporučuje da „ostavimo po strani pitanje 'Što je korporacija?' te 'umjesto toga postavimo pitanje 'Pod kojim vrstama uvjeta pravo korporacijama propisuje odgovornosti?'“, budući da bi to, smatrao je, razjasnilo „koji su točno problemi u pitanju“ u „protezanju pravila koja su načinjena za pojedince na udružena tijela“. ⁵⁶ Savjet za traženjem istinosnih uvjeta prijedloga, razumijevanjem analogija i traganjem za načelom kojim će se pravila protegnuti s jednog na drugi kontekst zvučao je razborito. No pogriješio je pretpostavivši da će takve analitičke tehnike razvodniti osnovno pitanje, naime jesu li korporacije entiteti u istoj stvarnosnoj razini kao i ljudske osobe, koje je Hart nazivao svojim terminom „pojedinci“ (*individuals*, op.prev.). Potiskivanje tog pitanja, potiskivanje koje Hart, iako ga ne zagovara, implicitno brani, otvara put agnosticizmu, proizvoljnosti i posljedičnoj nepravdi u slučajevima poput *Byrn v. New York City Health and Hospitals*.

Bez sumnje u zakonska pravila koja razlikuju korporacijska prava i odgovornosti od prava i odgovornosti njenih članova, možemo otići dalje u razumijevanju relevantnih stvarnosti i interesa odlazeći prvo korak dalje od Harta, prema Hohfeldovom majstorskom izlaganju kako je „posao prijenosa u oblicima, metodama i proceduri što se tiču takozvanih korporacija jednostavno još jedan način kojim *pojedinci* ili *prirodne osobe* mogu uživati svoje vlasništvo i upuštati se u poslovne pothvate“. ⁵⁷ Ne može se dobro razumjeti korporativnu ⁵⁸ odgovornost (ili prava, dužnosti, itd.) sve dok se ne razumije kako se podrazumijevaju te su zahvaćene odgovornosti, itd. ljudskih osoba, poput dioničara, direktora, zaposlenika i drugih čimbenika. Isto će vrijediti i za prava i odgovornosti drugih pravnih entiteta poput idola, zemljišta dobara, itd.; ta prava i odgovornosti se ne razumije sve dok ne možemo, izravno ili preko korporativnih posrednika, ukazati na pojedince koji kontroliraju utvrdiva sredstva, i tako dalje.

Hohfeldova poznatija analiza pravnih odnosa, iako (uz neke daljnje specifikacije) čini mogućom potpunu analizu takvih odnosa između osoba u bilo kojem danom trenutku, još uvijek ostavlja nešto što treba objasniti u pogledu kontinuiteta i objašnjenja prava. ⁵⁹ Slično tome, i njegovo izlaganje kako je korporativna prava, itd. kako postoje u bilo kojem trenutku, moguće razložiti bez ostatka na pojedinačna prava, itd. ne treba razumjeti kao da pokazuje kako skupina osoba nema nikakve stvarnosti. Ljudska skupina ili zajednica ima svu stvarnost skupnog djelovanja, kao i djelovanja i sklonosti za djelovanje svojih članova, ljudskih osoba; sklonosti koje se očituju u spremnosti članova da sudjeluju u zajedničkom djelovanju i u njihovu emocionalnom odgovoru na isto, poradi dobara koja tom djelovanju daju smisao. To znači da grupna stvarnost pripada redu ljudskih, istinski osobnih čina, redu čije postojanje stvaraju i osiguravaju izbori (i sklonosti izabiranja te odgovori na izbore) koje donose *osobe*. Grupni čin definira njegov „javni“

⁵⁶ „Definition and Theory in Jurisprudence“ (1953.), u: in HART, *Essays in Jurisprudence and Philosophy*, Clarendon Press, Oxford, 1983, 43, također 45, 47.

⁵⁷ Wesley Newcombe HOHFELD, „Nature of Stockholders' Individual Liability for Corporation Debts“, u: 9 *Columbia Law Review*, 9 (1909.), 285 na 288, ponovo tiskano u: HOHFELD, *Fundamental Legal Conceptions as Applied in Judicial Reasoning and other Legal Essays* (ur. W.W. Cook, Yale Univeristy Press, Princeton, NJ, 1923.), 194 na 197. Hartove djelomično kritične primjedbe glede Hohfeldova objašnjenja korporacija („Definition and Theory in Jurisprudence“, bilj. 56 gore, na 42 bilj. 22), čini se, promašuju bit.

⁵⁸ Napomenimo da, kako Hohfeld usput razjašnjava, da je razlika između formalno udruženih tijela i neudruženih asocijacija u mnogim vidovima mnogo manje jasna negoli se često pretpostavlja. Za to postoje dokazi u odredbama Interpretativnog akta iz 1978., par. 5 i Popis (prilagođeno iz Interpretativnog akta iz 1889., par. 19): „[u] bilo kojem aktu, osim ako se ne radi o suprotnoj namjeri [...] 'osoba' uključuje tijelo udruženih ili neudruženih osoba.“ Napomenimo i da bi ta definicija zaglibila u beskonačnom nazadovanju da se nije radilo o činjenici da pojam „osoba“ također „uključuje“ pojedinačne osobe poput onih koje su paradigmatični članovi tijela osoba, udruženih ili neudruženih.

⁵⁹ V. npr. FINNIS, *Natural Law and Natural Rights*, bilj. 6 gore, 201-202.

prijedlog, tj. oblik u kojem je ponuđen članovima skupine da u njemu sudjeluju ili ne. Društveni čini, iako nesvedivi na čine osoba iz djelujuće skupine, sastoje se isključivo od tih čina, čina pojedinačnih ljudskih osoba.⁶⁰

VI O OSOBAMA KAO PRVOTNIM NOSITELJIMA SMISLA I OBJEKTIMA TUMAČENJA

Tumačenje je prvenstveno, i to mu je glavni interes, stvar pokušaja da se objasni osobu ili osobe čiji se govor ili drugi značajni učinak razmatra. Budući da su o njemu u potpunosti odlučili oxfordski članovi Kuće lordova, *Mannai Investment Co. Ltd. v. Eagle Star Life Investment Co.*⁶¹ bismo mogli smatrati oxfordskim pravnoznanstvenim esejem. Znači li „12.“ 13.? Općenito gledajući, jasno da ne. No netko tko koristi riječ „dvanaesti“ može zapravo misliti „trinaesti“, a ispravno tumačenje korištenja riječi te osobe, u relevantnim i ispravno prihvatljivim okolnostima tog govora, može utvrditi da je to, budući da se radi o onom što je osoba mislila priopćiti te je bilo razumno smatrati da je to namjeravala priopćiti, pravo značenje tog govora, ispravno protumačeno. Kao što lord Hoffmann kaže, „Stvar je svakidašnjeg iskustva da ljudi mogu nedvosmisleno priopćiti ono što misle iako koriste pogrešne riječi.“ Istina je, dodaje, da:

Pravo ne zanimaju govornikove subjektivne namjere. No ideja da se pravo stoga bavi „značenjem njegovih riječi“ skriva važnu dvoznačnost. Ona se nalazi u neuspjelom razlikovanju između značenja riječi i pitanja što bi trebalo razumjeti kao *značenje osobe* koja riječi koristi [...]

Kad [...] odvjetnici kažu da su zabrinuti, ne glede subjektivnog značenja nego značenja jezika koji je govornik upotrijebio, ono što misle jest da ih brine kako bi ga se objektivno razumjelo što je mislio. To ne uključuje samo analizu riječi i gramatike nego i pozadine. Tako je primjerice u slučaju *Doe d. Cox v. Roe* (1802.) 4, osobito 185, 170 ER 685 najmodavac gostionice u Limehouseu naložio napuštanje „mog posjeda [...] koji se obično naziva [...] Waterman's Arms“. Dokazi su pokazali kako zakupnik nije uzeo u zakup nekretninu koja bi se zvala Waterman's Arms; doista, takve nije bilo u okrugu Limehouse. No zakupnik jest uzeo u zakup najmodavčevu nekretninu zvanu Bricklayer's Arms. Provjerom pozadine protumačeno je da se iskaz odnosi na Bricklayer's Arms. Značenje je bilo objektivno jasno razboritom primatelju informacije, iako je najmodavac upotrijebio pogrešni naziv [...] Nije bilo potrebe za utjecanjem subjektivnom značenju.⁶²

U akademskom pravnoznanstvenom eseu nema potrebe za korištenjem prilično varavi odvjetnički žargon „subjektivnog“ i „objektivnog“. No smisao lorda Hoffmanna jasno izbija na površinu unatoč odvjetničkoj nejasnoći. Kao što je kasnije naveo, „riječ po sebi ništa ne označuju; ljudi koji *koriste* riječi oni su koji nešto označuju“.⁶³ I opet: „[u] ovom području [trgovinskih ugovora] više ne brkamo značenje riječi s pitanjem koje je značenje korištenje tih riječi trebalo priopćiti“.⁶⁴ Odluka Kuće glasila je da, slično tome, obavijest o završetku najma na 12. siječnja 1995. u svim okolnostima te obavijesti o završetku najma (uključujući i takve kao što su uvjeti najma) – kao što bi u to vrijeme bilo očito i smatrano relevantnim od strane promatrača – nedvosmisleno priopćuje namjeru o završetku najma na 13. siječnja 1995. Jer to je ono što bi razborita osoba svjesna relevantne

⁶⁰ V. FINNIS, „Persons and their Associations“, u: *Proceedings of the Aristotelean Society*, Dodatak, svezak 43 (1989.) 267-274.

⁶¹ (1997.) AC 749, (1997.) 3 All ER352. Lordovi su bili podijeljeni 3:2, s dva suca University Collegea u većini (podržana od jednog Škota s Corpus Christi Collegea).

⁶² Čl. 376. Lord Goff ne slažući se prihvaća da je u slučaju *Doe d. Cox v. Roe* donesena ispravna odluka – tj. da je sud u tom slučaju „ispravno protumačio“ taj iskaz – te ne uspijeva na zadovoljavajuć način objasniti zašto većinsko tumačenje iskaza u samom *Mannaiju* nije jednako „ispravno“.

⁶³ Na 378 (njegov kurziv).

⁶⁴ Na 380. Glede tumačenja trgovinskih ugovora, v. također: *Investors' Compensation Scheme Ltd v. West Bromwich Building Society* (1998.) 1 WLR 896, (1998.) 1 All ER 98 ba 114e-116f, prema lordu Hoffmannu.

pozadine shvatila kao namjeru te tako i značenje koje je na umu osobi koja daje obavijest. Budući da je pravo poradi osoba, a njegova su pravila u osnovi odnosi između osoba, pogrešno je pokušavati razumjeti pravno tumačenje prema uzoru stvaranja i prikazivanja, pripovijedanja ili stvaranja umjetničkih djela.⁶⁵ Stoga, ako bi pravnici koji nastoje razumjeti mjesto tumačenja u pravu bili obvezani izabrati između „razgovornog“ i „umjetničkog“ modela, postupili bi razborito kad bi odabrali razgovorni. No alternative nisu iscrpne.

Nalik sudionicima u razgovoru, pravi tumači nastoje razumjeti autora koji je, dajući neku izjavu, vršio privatnu moć javnog autoriteta. No pravni tumači imaju pravo te se od njih i zahtijeva postupati s tom izjavom, osobito kad se donosi pri vršenju javne moći zakonodavstva ili donošenja presude, kao da se ona zauzima svoje mjesto u pravnom sustavu kao cjelini – u spletu osoba i njihovih ustanova, kao i načela i pravila, uključujući tehnike i konvencije nacrti i tumačenja, za što se sve pretpostavlja da je usmjereno k pravdi i općem dobru.

Dworkin je predlagao da se političku, pravno organiziranu zajednicu personificira, tako da se takvo srašćivanje s većom cjelinom, poput cjelovitosti osobnog karaktera, uzima kao aksiomatski neophodno.⁶⁶ Taj prijedlog dovoljno živo pokazuje da je njegova općenita asimilacija pravnog umjetničkim, a ne razgovornim tumačenjem manje prikladan izbor između dva modela koja nam predstavlja kao alternative. Istina, u pravnom tumačenju kao razgovoru autorova namjera zaista ima značenje, kao što to i samo poimanje autoriteta za stvaranje ili proglašavanje zakona povlači za sobom.⁶⁷ No ispravno pravno tumačenje neće biti jednako spremno smatrati autoritet nepravednim koliko li pravednim značenjem. Tako se ono razlikuje od razumnih konverzionista, koji poput dobrih povjesničara brzo opažaju te nisu previše skloni previdjeti moguće opake namjere ili manjkavosti karaktera svojih sugovornika.

VII O NARAVI OSOBA I TEMELJU NJIHOVE KORJENITE JEDNAKOSTI

Koje su onda „prirodne činjenice“ koje bi pravna znanost trebala uzimati u obzir promišljajući o osobama radi kojih pravo postoji da bi im služilo? Što je ta ljudska narav, koja je u svojoj tjelesnosti odvjetnicima poznata kao povrijeđene u zločinima i deliktima te se održava resursima kojih se uvijek nekako rješavamo imovinskim pravima (koliko god ona bila umjetna); te koja nam je u svojoj neumanjivoj intelektualnosti poznata kao stvarateljica znakova, oznaka i značenja i kao subjekt koji ima svoje namjere? Ovdje je za pravnoznanstveno promišljanje korisno vratiti se svojim ishodištima, koji su možda u Platonovim promišljanjima o suđenju Sokratu. U činu (recimo) razgovaranja sa svojim sugovornikom – možda sudom kojem se obraćam kao odvjetnik, ili klijentom kojeg savjetujem kao pravni savjetnik – svoj govor shvaćam kao provođenje izbora *koji sam načinio* te sam u istom tom činu svjestan svojeg čujnog govorenja, vidim kako slušatelji izražavaju svoje razumijevanje, osjećam se (recimo) samouvjereno ili uznemireno, sjećam se prošlog nesporazuma te se nadam da će moja izjava iznijeti ono što želim reći. To iskustvo *jedinstva (uključujući i kontinuitet)* mog bića – kao osjećaja, htijenja, promatranja, sjećanja, razumijevanja, fizički aktivan i učinkovit pokretač ili uzrok fizičkih učinaka, a jednako tako i koji kroz te učinke prolazi i prima ih – datost je koju filozofsko propitkivanje ljudske i drugih prirodnih stvarnosti može primjereno objasniti jedino s velikim poteškoćama i uz mnoge zamke. No svejedno, prethodeći svim pokušajima njenog objašnjenja, ova inteligibilna prisutnost mog mnogolikog sebstva meni samome datost je koja se tiče *razumijevanja* jedno te isto „ja“ – ovo ljudskog bića – koje razumijevam te odabirem i provodim svoj izbor, i osjećam, itd. stvarnost je koju već zaista razumijem, iako još ne u potpunosti (objasnidbeno, s razradom). (Doista, samo uzevši u obzir ovo prvotno razumijevanje našeg razumijevanja, htijenja i tako dalje, možemo, te je obično

⁶⁵ V. FINNIS, *Natural Law and Legal Reasoning*, u: Robert P. George (ur.), *Natural Law Theory*, Oxford University Press, Oxford, 1992., 134-57 na 139-143.

⁶⁶ *Law's Empire*, bilj. 8 gore, 167-175; v. također npr. 225: „[n]ačelo cjelovitosti pri donošenju presuda upućuje suce da identificiraju zakonska prava i dužnosti koliko je god moguće, pod pretpostavkom da ih je načinio jedan jedini autor – personificirana zajednica – koji je izrazio suvislo shvaćanje pravde i pravednosti.“

⁶⁷ V. Joseph RAZ, *Intention in Interpretation*, u: Robert P. George (ur.), *The Autonomy of Law*, Oxford University Press, Oxford, 1996., 249-286 na 268.

tako i slučaj, *cijeniti* takvo razumijevanje, slobodu, dragovoljnost, jedinstvo bivanja, i tako dalje.

Stoga, kao što Aristotel i (jasno) Akvinac više ili manje izričito tvrde⁶⁸, bilo kakav prikaz koji nudi objašnjenje ovih stvarnosti mora biti dosljedan složenim podacima koje nastoji objasniti, podacima koji uključuju i djelovanje onoga koji to objašnjenje nudi, bilo vanjsku bilo unutarnju. Neću (kao što to mnogi danas čine) predlagati prikaz osobe prema kojem bi ta duša-osoba i puko živuće tijelo bili jedno drugome strani, jer „duša-osoba“ i „puko živuće tijelo“ filozofske su tvorevine od kojih se nijedna ne odnosi na ujedinjeno sebstvo, osobu koja je nakanila objasniti svoju stvarnost. Obje te tvorevine navodno ukazuju na stvarnosti koje su drukčije od ujedinjenog sebstva, a opet nekako, neobjašnjivo, stoje s njim u vezi.⁶⁹

Jedini prikaz koji zadovoljava uvjet dosljednosti sa stvarnošću samog objasnitelja i njegovim djelovanjem bit će onaj na liniji koju zagovaraju Aristotel i Akvinac: sama *forma* i cjeloživotni *akt(ualnost)* kojima je materija mog tjelesnog sastava posložena ujedinjeni i aktivni subjekt je čimbenik, stvarnost koju Aristotel (slijedeći Platona) naziva *psyche*, a Akvinac dušom (*anima*). U ljudskoj životinji – istoj toj životinji čije bi interese u svakom pojedinom slučaju trebalo jednako uzeti u obzir, jednako i u Platonovoj i u današnjoj etici što se trudi biti „postmetafizičkom“ – od samoga početka njegova ili njezina postojanja kao čovjeka, upravo je taj bitno nepromjenjivi čimbenik, jedinstven za svakog pojedinca, onaj koji objašnjava (1.) jedinstvo i složenost pojedinčevih aktivnosti, (2.) dinamičko jedinstvo u složenosti – u jednoj dimenziji, program – pojedinčevog razvoja kao embrija, fetusa, novorođenčeta, djeteta... i odrasle osobe, (3.) razumijevanje koje relativno zreli pojedinac ima glede sveopćih (tj. općenitih) nematerijalnih misaonih predmeta (npr. razreda bića, ili istine i laži iskaza, ili pak ispravnog i neispravnog zaključivanja), te (4.) općenito jedinstvo tog jedinstvenog pojedinca sa svakim drugim pripadnikom vrste. U pripadnika naše vrste taj jedan čimbenik koji ujedinjava i aktivira životnu stvarnost svakog pojedinca odjednom je i vegetativan, životinjski (sadrži osjete te je samopokretljiv) i intelektualan (razumijevanje, samorazumijevanje, pa čak i u razmišljanju, samoodređenje pomoću prosudbe i odabira). Naravno, mnogostrukost aktivnosti tih tjelesnih i razumskih moći različito ovisi o pojedinčevoj fizičkoj zrelosti i zdravlju. No bit i moći duše su, čini se, svakom pojedincu dane u potpunosti (kao sasvim nerazvijene, *korjenite* sposobnosti), od početka njegova postojanja kao takvog. I to je korijen dostojanstva koje svi kao ljudska bića imamo. Bez njega bi tvrdnje o jednakosti prava, suočene s mnogim načinima na koje su ljudi nejednaki, bile neodržive.

Ova metafizika aktivnosti raspravljanja, zagovaranja, donošenja presuda, poučavanja i pisanja omogućava pravnoj znanosti da stabilizira svoje najtemeljnije pojmove: dobro koje, budući da je dobro članova skupine od kojih su svi ljudske osobe, može i trebalo bi biti *opće* dobro, te prava od kojih se pravda u osnovi sastoji nepopustljivo ih poštujući i promičući.

⁶⁸ V. Toma AKVINSKI, *De Unitate Intellectus* III.3 (79); FINNIS, *Aquinas: Moral, Political, and Legal Theory*, Oxford University Press, Oxford, 1998., 177-179.

⁶⁹ V. FINNIS, Bland: Crossing the Rubicon?, u: *Law Quarterly Review*, 109 (1993.), 329-337 na 333.

Introduction to *Islam and Human Rights*

Muhammad Zufralla Khan

Life is dynamic, and so are man and human society. One characteristic of dynamism is that it generates friction, and in terms of social values that means difference and very often dispute. Difference, or, let us say, the right to differ, lies at the root of all knowledge, inquiry, investigation, research and progress. While, therefore, we must strive to safeguard the right to differ, to question, to dissent and on occasion even to protest, we must at the same time strive to secure that our differences, in every sphere - religious, philosophical, scientific, social, economic, political or whatever, should act and react beneficently and not destructively. When they threaten to become acute they must be regulated, and must be sought to be resolved or adjusted through the adoption of agreed peaceful procedures. This means, broadly, that we must all submit voluntarily or, if needed, reluctantly and even under constraint, to what has come to be described as the rule of law.

The Declaration of Human Rights does not, in the accepted juristic sense of the term, constitute a "law". It stands, nevertheless, as a shining milestone along the long, and often difficult and weary, path trodden by Man down the corridors of History, through centuries of suffering and tribulation, towards the goal of freedom, justice and equality. Man's struggle for freedom, justice and equality has been waged in all ages and in many fields and theatres, with varying fortunes. Each of these battles, and the ground won in each, have, in turn, forwarded the cause of Man and have contributed towards the formulation and adoption of the Declaration, which is entitled to rank with the great historical documents and Charters directed towards the same objective.

Some of the written Constitutions, more particularly those of certain newly independent States, have incorporated the substance of several of the articles of the Declaration as substantive provisions, and others have set forth some of them as Directives of State policy. In the former case the relevant provisions have become justiciable and are thus enforceable through judicial process. This is encouraging, so far as it goes; but it is only a beginning. Much remains to be achieved in that regard, as well as in other respects.

At this stage the main effort must continue to be directed towards obtaining wider recognition of the need to insure that human rights shall carry with them sanctions which would serve to make these rights enforceable through judicial process. For this purpose, the principal instrument which should be availed of is the national legislature of each State, which should, through appropriate constitutional and legislative processes, invest human rights with legal sanctions enforceable through the national judicial system. This process would, however, prove effective only in the case of States in which resort to judicial process is not unduly restricted and the process is guaranteed to take its due course without let or hindrance. In other words, a free and independent judiciary is a *sine qua non* for the effective safeguarding of human rights and for guaranteeing freedom, justice and equality.

Legislative action at the national level, supported by a free and independent judiciary, would go a very long way towards securing the desired objective, but would need to be supplemented by provision for recourse, by way of appeal or review, and in suitable cases even by original motion, to regional tribunals and ultimately to an International Tribunal. Recourse to a regional or to the International Tribunal at the initial stage should, however, be available only in cases where no remedy has been provided for at the national level. Exhaustion of remedies available at the national level must be a condition precedent without fulfilment of which recourse should not be open to a regional or International Tribunal. In the absence of such a provision, the harmonious working of a system of national, regional and International Tribunals might prove both cumbersome and difficult.

Regarding legislative provisions embodying human rights, it must be remembered that the Declaration of Human Rights is not a draft Bill and cannot serve that purpose. While some of the articles of the Declaration embody clear-cut, concrete provisions and could, with slight verbal alterations, be incorporated in a draft Bill, the rest only give expression to the ideal or objective to be achieved through administrative action, possibly in stages, supported and strengthened by legislative authority. The pace and tempo in each region and country would be dependent upon many and varying factors - social, cultural, economic - and uniformity could not reasonably be insisted upon. Nor would it be wise to call for literal compliance with every article of the Declaration. Some of these, pertaining to the social and cultural fields, may, in certain systems and disciplines, be acceptable in the spirit, while calling for some modification, limitation or explanation of their scope, meaning and operation before they could be cast in the legislative mould. So long as the purpose underlying them could be carried into effect, adaptation to particular social and cultural systems and patterns would be beneficent rather than harmful. This is the Age of Man. Man is beginning to be conscious of his own position in the universe and demands that his personality and dignity shall be accorded due recognition and respect. He is beginning to take note of that which his fellow beings, society and the State owe to him and of that which, in turn, he owes to them. This process needs to be stimulated and accelerated. This consciousness needs to be aroused where it may still be lacking and to be sharpened where it has been awakened. In this context emphasis must be laid on man's obligations and duties towards his fellow beings as the principal means of securing his own rights, freedom and privileges, for they are the obverse and reverse of the same coin. To the degree to which each of us fulfils and discharges his own duties and obligations towards his fellow beings, he promotes the climate in which human dignity, freedom and equality may flourish and achieve their consummation.

How is it that in the last half of the twentieth century, after having passed through the shattering and devastating experience of two world wars and in the shadow of a nuclear holocaust, despite all the effort that has so far been put forth to the contrary, man continues to be the victim of discrimination, intolerance and cruelty at the hands of his fellow man? One would have thought that man's daily increasing knowledge of the working of the laws of nature and his growing mastery over the forces of nature, which have opened for everyone of us the prospect of a richer, fuller and happier life, would have brought in their wake an era in which man could dispense with the weapons of greed, selfishness, exploitation and dominance which had so far been regarded, albeit utterly erroneously, as contributing towards the welfare and prosperity of those who were, from time to time, in a position to employ them. For, indeed, the truth is daily becoming more manifest, as experience in every field continues to furnish fresh confirmation, that the prosperity of all is promoted through mutual sharing and co-operation rather than through the exploitation and domination of some by others. It must be our constant endeavour to bring this home to all in every corner of the globe.

While, therefore, it is not only necessary but essential that we should intensify and multiply our efforts towards the safeguarding of human rights through executive, administrative, legislative and judicial processes, we must all, individually and collectively, strive continuously to deepen our consciousness of the duties we owe to each other at the moral and spiritual levels.

For the Muslims, and indeed for all mankind, Islam seeks to stimulate and deepen that consciousness. It emphasizes our duties and obligations, so that each of us, by due discharge of them, should help to safeguard freedom, justice and equality for all and should promote and foster human welfare and prosperity in all spheres - social, economic, moral and spiritual. It seeks to establish a pattern of society which, in all the changing and developing circumstances of a dynamic world, would maintain its character of beneficence in all spheres of life - individual, domestic, national and international. For this purpose it furnishes us with a framework of beliefs, duties, obligations, exhortations and sanctions. It also provides us with guidance at all levels and in all fields.

The Prophet's functions are described in the Quran as, the creation and strengthening of faith through drawing attention to Divine Signs, the moral and physical uplift of the people, teaching them the Law and furnishing them with guidance and expounding the philosophy underlying the Law and the guidance (62:3).

It should be noted that the Quran prescribes only those details which are essential. It thus leaves considerable room for development and safeguards against restrictive rigidity. Indeed, it warns against seeking the regulation of everything by express Divine command, as that might make the framework rigid and inelastic and therefore burdensome. "O ye who believe, do not keep asking about things which, if they were expounded to you, would become troublesome for you . . . Allah has left them out. Allah is Most Forgiving, Forbearing. A people before you made such demands, and when they received the directions they repudiated them" (5:102-3).

That which Allah has "left out" is meant to be devised, in accord with the prescribed standards and values and in consonance with the framework, through mutual consultation (3:100; 42:39) to meet the need when it should arise, always bearing in mind that the overall standard is that *ma'roof*, equity, is to be fostered and *munkar*, iniquity, is to be eschewed.

When the Prophet appointed Mu'az as Qazi of Yemen, he asked him what rule he would follow when he had to make a decision. Mu'az said he would look for the rule in the Book of Allah. "And if you do not find the answer in the Book?" queried the Prophet. "I shall seek for it in the example of the Prophet." "And if you still lack an answer?" "I shall exercise my own judgment." "That is the right way," he was assured by the Prophet.

The whole vast, elaborate system of Muslim jurisprudence has been developed along those lines. In fact Islam stimulated and released so effervescent and variegated an intellectual ferment that, to confine oneself to the field of jurisprudence alone, within a very brief period several Schools of Jurisprudence flourished within the rapidly widening expanse of the Islamic State. Four of them, the Hanafi, Maliki, Shafei and Hanbali (all of the Sunni persuasion) still maintain their pre-eminence and hold their sway in regions where Islamic Law is administered.

The great Imams of Jurisprudence, Sunni and Shii alike, and also those of other persuasions, together with their eminent disciples and a host of those who followed after them have, through their unremitting labours sustained through centuries, not only enriched and embellished Muslim Jurisprudence, but made an invaluable contribution to the development of the Science of Law and to what that eminent international jurist, C. Wilfred Jenks, has called the Common Law of Mankind. They have thus laid the juristic world under a heavy debt of gratitude.

Introduction to the 1948 UNESCO Philosophers' Report

Jacques Maritain

Of the tasks assigned to the United Nations Organization, one of those which could and should most nearly affect the conscience of the peoples is the drawing, up of an *International Declaration of Human Rights*. The task was committed to the Economic and Social Council of the United Nations. Unesco's part was to consult philosophers and assemble their replies. This volume is a collection of the most significant texts thus gathered in the course of Unesco's enquiry into the philosophic bases of Human Rights.

This book then is devoted to the rational interpretation and justification of those rights of the individual which society must respect and which it is desirable for our age to strive to enumerate more fully. Many schools of thought are represented, each of which brings to the whole its particular view and justification of individual rights, leaning in various degrees towards the classical or the revolutionary interpretation: it is not the first time that expert witnesses have quarrelled among themselves. The paradox is that such rational justifications are indispensable yet powerless to bring about agreement between minds. They are indispensable because each one of us believes instinctively in the truth, and will only assent to what he himself has recognized as true and based on reason. They are powerless to bring about a harmony of minds because they are fundamentally different, even antagonistic: and why should this surprise us? The questions they raise are difficult and the philosophical traditions to which they are related have long been divergent.

It is related that at one of the meetings of a Unesco National Commission where Human Rights were being discussed, someone expressed astonishment that certain champions of violently opposed ideologies had agreed on a list of those rights. "Yes", they said, "we agree about the rights *but on condition that no one asks us why*." That "why" is where the argument begins.

The question of Human Rights offers us an outstanding example of the situation I attempted to outline in an address at the Second General Conference of Unesco, from which I venture to reproduce certain passages.

"How" I asked "can we imagine an agreement of minds between men who are gathered together precisely in order to accomplish a common intellectual task, men who come from the four corners of the globe and who not only belong to different cultures and civilizations, but are of antagonistic spiritual associations and schools of thought . . .? Because, as I said at the beginning of my speech, the goal of Unesco is a practical goal, agreement between minds can be reached spontaneously, not on the basis of common speculative ideas, but on common practical ideas, not on the affirmation of one and the same conception of the world, of man and of knowledge, but upon the affirmation of a single body of beliefs for guidance in action. No doubt, this is little enough, but it is the last resort to intellectual agreement. It is nevertheless, enough to enable a great task to be undertaken and it would do much to crystallize this body of common practical convictions."

"I should like to note here that the word 'ideology' and the word 'principles' can be interpreted in very different senses. I have shown that the present state of division among minds does not permit of agreement on a common *speculative ideology* nor on common explicit principles. But, on the other hand, when we are concerned with a basic *practical* ideology of basic principles of *action* implicitly recognized today, in a live, even if formulated state, by the consciousness of free peoples, we find that they constitute *grosso modo* a sort of common denominator, a sort of unwritten common law, at the point where in practice the most widely separated theoretical ideologies and mental traditions converge. To understand

this, it is only necessary to make the appropriate distinction between the rational justifications involved in the spiritual dynamism of a philosophic doctrine or religious faith, and the practical conclusions which, although justified in different ways by different persons, are principles of action with a common ground of similarity for everyone. I am quite certain that my way of justifying belief the rights of man and the ideal of liberty, equality and fraternity is the only way with a firm foundation in truth. This does not prevent me from being in agreement on these practical convictions with people who are certain that their way of justifying them, entirely different from mine or opposed to mine, in its theoretical dynamism, is equally the only way founded upon truth. If both believed in the democratic charter, a Christian and a rationalist would still give mutually incompatible justifications for their belief, if their hearts and minds and blood were involved, and they would fight each other for them. And God forbid that I should say it does not matter to know which of the two is right! It matters essentially. The fact remains that, on the practical expression of this charter, they are in agreement and can formulate together common principles of action."

Where it is a question of rational interpretation and justifications of speculation or theory, the problem of Human Rights involves the whole structure of moral and metaphysical (or anti-metaphysical) convictions held by each one of us. So long as minds are not united in faith or philosophy, there will be mutual conflicts between interpretations and justifications.

In the field of practical conclusions, on the other hand, agreement on a joint declaration is possible, given an approach pragmatic rather than theoretical and co-operation in the comparison, recasting and fixing of formulae, to make them acceptable to both parties as points of convergence in practice, however, opposed the theoretic viewpoint. There is nothing to prevent the achievement, in this way, of a new and wider declaration of Human Rights marking a notable stage in the unification of the world, and wherein more especially the concept exclusive to classical individualism of man as a being inherently entitled to rights and liberties for the working out of his personal destiny, and the concept exclusive to Marxism of man as a being with rights and liberties deriving from his role in the historical evolution of the community of which he is a part, would supplement and integrate each other - I mean purely pragmatically and only for the promulgation of a number of principles for action and rules of behaviour. It is not reasonably possible to hope for more than this convergence in practice in the enumeration or articles jointly agreed. The reconciling of theories and a philosophic synthesis in the true sense are only conceivable after an immense amount of investigation and elucidation of fundamentals, requiring a high degree of insight, a systematization and authoritative correction of a number of errors and confusions of thought. For that very reason, and even if it succeeded in influencing culture to any important degree, this synthesis would remain one doctrine among many, accepted by some and rejected by others, with no pretention in fact to universal dominion over the minds of men.

The very diversity of the interpretations and justifications put forth in the essays in this book is in itself an important object lesson for the reader, wherein he will find, I trust, confirmation of the considerations set out above. Is there anything surprising in systems antagonistic in theory converging in their practical conclusions? It is the usual picture which the history of moral philosophy presents to us. The phenomenon proves simply that systems of moral philosophy are the products of reflection by the intellect on ethical concepts which precede and govern them, and which of themselves display, as it were, a highly complex geology of the mind where the natural operation of spontaneous reason, pre-scientific and pre-philosophical is at every stage conditioned by the acquisitions, the constraints, the structure and the evolution of the social group. Thus, if I may be allowed the metaphor, there is a kind of plant-like formation and growth of moral knowledge and moral feeling, in itself independent of philosophical systems and the rational justifications they propound, even though there is a secondary interaction between them and itself. Is it surprising that, while all these systems quarrel over the why and wherefore, yet in their practical conclusions they prescribe rules of behaviour which are in the main and for all practical

purposes identical for a given age and culture? What is chiefly important for the moral progress of humanity is the apprehension by experience which occurs apart from systems and on a different logical basis - assisted by such systems when they awake the conscience to knowledge of itself, hampered by them when they dim the apperceptions of spontaneous reason, or when they cast suspicion on a genuine acquisition of moral experience by linking it with some error of theory or false philosophy.

Finally, it is the speculative and interpretative approach, as such, in the present book, will afford the reader the chief food for thought. For the texts here collected bring us the testimony of men specially well qualified to give an authoritative exposition of the main currents, of contemporary thought. It is profitable to know those currents, however severely we may censure those which that are not our own and however legitimate that censure may sometimes be. Whatever school of thought we belong to, the comparison of our own ideas with those of so many distinguished minds will perfect and broaden our views on the nature and basis of Human Rights, on what enumeration of them should be attempted at our present stage in historical evolution, and on the scope - indeed on the gaps also - of the new declaration being prepared in the councils of the United Nations.

From the point of view of philosophic doctrine it may be said, without over-simplification, that, as regards, the question of Human Rights, men are today divided - as the readers of this collection will easily perceive - into two antagonistic groups: those who to a greater or lesser extent explicitly accept, and those who to a greater or lesser extent explicitly reject "Natural Law" as the basis of those rights.

In the eyes of the first the requirements of his being endow man with certain fundamental and inalienable rights antecedent in nature, and superior to society, and are the source whence social life itself, with duties and rights which that implies, originates and develops. For the second school man's rights are relative to the historical development of society, and are themselves constantly variable and in a state of flux; they are a product of society itself as it advances with the forward march of history.

Such an ideological contrast is irreducible and no theoretical reconciliation is possible; it could however be lessened to some extent, insofar as it was possible for the supporters of "Natural Law" to stress that, although certain fundamental rights meet a prime necessity of that law while others meet only a secondary necessity or are merely desirable, nevertheless our knowledge of both is in all circumstances subject to slow and irregular growth, so that those rights only stand forth as acknowledged rules of conduct as moral consciousness progresses and societies evolve; and insofar as it was possible for the opponents of "Natural Law" to stress that, though many rights are seen to be conditioned on the evolution of society, other more primitive rights stand out as a condition of society's very existence. However, it is by no means certain that the "fundamental rights" of the first group would always coincide with the "more primitive rights" of the second . . .

If thereafter we adopt no practical view point and concern ourselves no longer with seeking the basis and philosophic significance of Human Rights but only their statement and enumeration, we have before us an entirely different picture, where no theoretical simplification is any more in question: then, as I have explained above, not only is agreement possible between the members of opposing philosophic schools, but it must be said that the operative factors in any historical introduction to a joint assertion of Human Rights are less the schools of philosophy themselves than *currents of thought*, which are doubtless linked more or less closely to those schools, but where the principal part has been played by the lessons of experience and history and by a kind of practical apprehension, bringing with them a dynamically greater force, and simultaneously a wider liberty relative to the principles and logic of abstract systems. In consequence, it cannot be too strongly emphasized that admission of a particular category of rights is not the exclusive possession of one school of thought: it is no more necessary to belong to the school of Rousseau to recognize the rights of the individual than it is to be a Marxist to recognize the "new rights" as they are called, economic and social rights. The gains of the collective intelligence under the influence

of its several cross-currents go far beyond the disputations of the schools.

It is legitimate to suspect that the antagonism which many contemporary authors see fit to postulate between "old" and "new" Human Rights is partly artificial and derived either from the liking of theorists for ideological conflicts or more, perhaps, from the absolutist concept of Human Rights held by the philosophy - or better the rhetoric - of the 18th Century, whose after effects still in some measure give rise to misunderstandings today, and taint certain sacred formulae of the vocabulary of Human Rights. If each of these rights is in itself absolute and not susceptible of any limitation, in the same way as a divine attribute, clearly conflict between them is insoluble. But in practice everyone sees that these rights, being human, are subject, like every other human thing, to modification and limitation. Even where rights are "inalienable", a distinction must be made between possession and exercise, the latter being subject to the modifications and limitations dictated in each instance by justice. If a criminal can justly be condemned to lose his life, it is because he has, by his crime, deprived himself, not of his right to existence, but rather of the possibility of demanding that right with justice: morally he has cut himself off from membership of the human community, as far as concerns the use of that fundamental and "inalienable" right which the penalty imposed prevents his exercising. Again the imparting by teaching and upbringing of the heritage of human culture is a fundamental right: in practice it is subject to the physical capacity of a given society, and justice may forbid its enjoyment by all being demanded *hic et nunc*, if such enjoyment is only conceivable through the dissolution of the social body, as in the case of the slave-owning society of ancient Rome, or the feudal society of the middle ages; the claim nevertheless remains a legitimate goal to be achieved in time. It then remains to endeavour to change the social order in question. Incidentally, this instance shows us that at the root of the hidden urge which impels us ever to the transformation of society, there lies the fact that man *possesses* "inalienable" rights and that nevertheless he is deprived of the possibility of justly claiming to *exercise* certain of them by such inhumanities as subsist in the social structure of each age.

It is only normal that the various acknowledged rights of the individual should be mutually limitative, and in particular that economic and social rights, the rights of man as a social animal, cannot take their place in human history without some restrictions upon the freedom and rights of man as an individual. Where the difficulties and arguments begin is in the determination of the scale of values governing the exercise and concrete integration of these various rights. Here we are no longer dealing with the mere enumeration of Human Rights, but with the principle of dynamic unification whereby there are brought into play, with the tone scale, with the specific key in which different kinds of music are played on the same keyboard, music which in the event is in tune with, or harmful to, human dignity.

Conceivably the advocates of the liberal-individualist, of the Communist and of the co-operative type of society might draw up similar, even identical, lists of Human Rights. But their exercise of these rights will differ. All depends on the ultimate value whereon those rights depend and in terms of which they are integrated by mutual limitations. It is, in term of the scale of values which we thus acknowledge that we establish the means whereby, in our eyes, Human Rights, economic and social, as well as individual, shall impinge on life; it is from these different scales of values that spring mutual accusations of misunderstanding certain essential rights of the human being levelled by those for whom the mark of human dignity lies firstly and chiefly in the power to appropriate individually the gifts of nature so that each may be in a position to do freely what pleases him; by those who see it in the power to place those gifts under the collective control of the social body and thus deliver man from the treadmill of labour and gain control of history; or by those who see it in the power of bringing the gifts of nature into service for the joint attainment of an immaterial good and of the free self-determination of the person. It remains to be decided which has a true and which a distorted vision of Man.

By following this line of thought the extent and limits of the practical agreement on Human Rights

so often mentioned in the pages of this Introduction would become clear. It would be understood that to go beyond a mere list or enumeration of rights and to produce a true Charter determining a common way of action, the agreement must also cover the scale of values, the key in which in their practical exercise in social life, the acknowledged rights of man must be harmonized.

Thus, we must not expect too much of an International Declaration of Human Rights. Yet does it not, above all, bear witness to what the peoples await today? The function of language has been so much perverted, the truest words have been pressed into the service of so many lies, that even the noblest and most solemn declarations could not suffice to restore to the peoples faith in Human Rights. It is the implementation of these declarations which is sought from those who subscribe to them; it is the means of securing effective respect for Human Rights from States and Governments that it is desired to guarantee. On this point I should not venture to express more than the most guarded optimism. For to reach agreement, no longer merely on the definition of Human Rights, but on arrangement for their exercise in daily life the first necessity, as I have pointed out above, would be agreement on a scale of values. For the peoples to agree on the means of securing effective respect for Human Rights, they would have to have in common, however implicitly, not necessarily the same speculative concept, but at least the same practical concept, of man and life, the same "*philosophy of life*" if I may once be allowed to use the word "philosophy" in the outrageously improper sense of the popular pragmatism of today.

Does the testimony collected in this volume give grounds for hope that, despite the clash of theory, a few scanty features of such a practical ideology, sufficiently defined and resolved to be effective, are in the course of taking root in the conscience of the nations? Does it give grounds for hope that one day agreement may be reached throughout the world, not only on the enumeration of Human Rights but also on the key values governing their exercise and on the practical criteria to be used to secure respect for them? We do know that, though the crisis of civilization which rose with this century has offered to our gaze the gravest violations of Human Rights, yet simultaneously it has led the public mind to a keener awareness of those rights, and Government propaganda to pay to them - in words - the most ringing tributes. Pending something better, a Declaration of Human Rights agreed by the nations would be a great thing in itself, a word of promise for the downcast and oppressed throughout all lands, the beginning of changes which the world requires, the first condition precedent for the later drafting of a universal Charter of civilized life.

Foundations of Human Rights: The Unfinished Business

Mary Ann Glendon

The more I learned about the circumstances of the framing of the Universal Declaration of Human Rights, the more I realized that the framers had consciously left a crucial task unfinished: demonstrating that fundamental rights could be grounded in the world's major philosophical and religious traditions. This essay appeared in 1999 American Journal of Jurisprudence.

Over the two years it took them to draft the 1948 Universal Declaration of Human Rights, the eighteen members of the U.N.'s first Human Rights Commission had surprisingly few discussions of why human beings have rights or why some rights are universal.¹ After the horrors of two world wars, the need for a minimal common standard of decency seemed evident. One of the first tasks assigned to the new Commission chaired by Eleanor Roosevelt was the preparation of an "international bill of rights." The Commissioners, in haste to complete their work before the deepening Cold War made its acceptance by the General Assembly impossible, left the problem of foundations for another day.

At the Commission's first session in January 1947, China's Peng-chun Chang and Lebanon's Charles Malik did try to initiate a discussion of the premises on which such a document might be based.² Chang was a Confucian philosopher and educator who had done post-graduate work with John Dewey, and Malik was a philosopher of science who had studied with Alfred North Whitehead and Martin Heidegger. Their suggestions precipitated the Commission's first argument. The Yugoslav, French and English delegates began to wrangle over the relation between man and society.

Several other Commissioners became impatient with that sort of discussion. They just wanted to get on with the business at hand. After a time, India's Hansa Mehta broke in. She was one of two women on the Commission, a pioneering human rights activist, a crusader against British colonialism, and an advocate for women's equality. She said, "We are here to affirm faith in fundamental human rights. Whether the human person comes first or the society, I do not think we should discuss that problem now. We do not need to enter into this maze of ideology."³

Charles Malik, who had been literally called out of his Beirut classroom and pressed into public service by the government of newly independent Lebanon, had not yet perfected the suave diplomatic style for which he would later become famous. He rebuked Mrs. Mehta as a professor of the old school would chide a student, saying: "Whatever you may say, Madam, must have ideological presuppositions, and no matter how much you may fight shy of them, they are there, and you either hide them or you are brave enough to bring them out in the open and see them and criticize them."⁴

The Commission's Chair, Eleanor Roosevelt, quickly realized that the group would have to concentrate on specifics if the project was to stay on course. She steered the discussion back to the problem of organizing the group's work schedule. Thereafter, the question of foundations surfaced only sporadically. One such occasion was the presentation of a discussion draft by the Secretariat of the U.N. Human Rights Division. Australia's Colonel Roy Hodgson demanded to know what was the philosophy behind the paper:

¹ For details of the framing of the Universal Declaration, see Mary Ann Glendon, *Rights from Wrongs* (forthcoming, Random House).

² Human Rights Commission, First Session, Summary Records (FJCN.4/SR.7 p. 4).

³ Verbatim Record, from *The More Important Speeches and Interventions of Charles Malik* (Papers of Charles Malik, Library of Congress, Manuscript Division), p. 38.

⁴ *Ibid*, 44

"What principles did they adopt; what method did they follow?"⁵ John Humphrey, the Canadian head of the Human Rights Division, replied that the draft "was based on no philosophy whatsoever." It was, he said, merely a collection from existing constitutions of "every conceivable right which the Drafting Committee might want to discuss."⁶

At the very end of the drafting process, and without much discussion, the Commissioners did make a statement about the basis of human rights in the Preamble to the 1948 Declaration. The Preamble's opening line recites that "recognition of the inherent dignity and of the equal and inalienable rights of all members of the human family is the foundation of freedom, justice and peace in the world." The word "dignity" appears at so many key points in the Declaration, that many scholars believe it represents the Declaration's ultimate value. Louis Henkin puts it this way: "Eschewing—in its quest for universality—explicit reliance on Divine inspiration or on Natural Rights, the Declaration provided the idea of human rights with a universally acceptable foundation, an ur-principle, human dignity."⁷

But inquiring minds must ask what is this "dignity," and what is its basis? Its proximate source is easy to locate. The U.N. Charter professes "faith in freedom and democracy" which, according to the Charter, is grounded in another "faith"—"in the inherent dignity of men and women." That is a good deal of faith for a document that eschews divine inspiration. No wonder we find Nobel laureate Czeslaw Milosz musing ruefully about "those beautiful and deeply moving words which pertain to the old repertory of the rights of man and the dignity of the person."⁸ Milosz continues, "I wonder at this phenomenon because maybe underneath there is an abyss. After all, these ideas had their foundation in religion, and I am not over-optimistic as to the survival of religion in a scientific-technological civilization. Notions that seemed buried forever have suddenly been resurrected. But how long will they stay afloat if the bottom is taken out?"

Milosz puts the question neatly as only a poet can. Is the universal rights idea merely based on a kind of existential leap of faith? Or does it have some sturdier basis?

Such questions came to the surface when the Universal Declaration celebrated its fiftieth anniversary in 1998 amidst a barrage of attacks upon its aspiration to universality—mainly in the name of cultural relativism. Typically these assaults describe the Declaration as an attempt to universalize a particular "Western" set of ideas and to impose them upon people who were under colonial rule and thus not represented in its creation. The human rights project is dismissed as an instrument of "cultural imperialism" or "neo-colonialism."

An equally common retort is that cultural imperialism is the cry of the world's worst rights violators. That sort of response, however, is obviously inadequate: The allegations of cultural relativism and imperialism could be hypocritical or ideologically motivated, but nevertheless true. I propose therefore to take the accusations seriously.

My conclusions are as follows: (1) The Universal Declaration was an impressively, though imperfectly, multicultural document when it was adopted in 1948. It cannot be dismissed as "Western." (2) The framers of the Declaration did take account of the diversity of cultures by leaving room for a legitimate pluralism in interpreting and implementing its open-ended principles. (3) The danger of human rights imperialism is real, but its source is in the efforts of special interest groups to commandeer human rights for their own purposes, rather than in the Declaration itself. (4) The human rights project will rest on shaky foundations unless and until philosophers and statespersons collaborate on the business that the framers

⁵ Human Rights Commission, Drafting Committee, First Session (E/CN.A.4.I.SR.I, p.5).

⁶ Ibid.

⁷ Louis Henkin, "The Ideals of Human Rights: Ideology and Aspiration, Reality and Prospect," in *Human Rights Policy* (New York: S1. Martin's Press, forthcoming).

⁸ Czeslaw Milosz, "The Religious Imagination at 2000," *New Perspectives Quarterly*, Fall 1997, 32.

left unfinished.

1. Is the Universal Declaration "Western"?

Those who label the Universal Declaration "Western" base the claim mainly on two facts: (1) many of the world's peoples, especially those still living under colonial rule, were not represented in the United Nations in 1948, and (2) most of the Declaration's rights first appeared in European and North and South American documents. Those statements are correct, but do they destroy the universality of the Declaration?

Contrary to what is often suggested, the participation by developing countries in the framing of the Declaration was by no means negligible.⁹ At the U.N.'s founding conference in San Francisco conference in 1945, it was chiefly the smaller or less-developed nations who were responsible for the prominent position of human rights in the U.N. Charter. Within the eighteen-member Human Rights Commission, China's Peng-chun Chang, Lebanon's Charles Malik, the Philippines' Carlos Romulo, and Chile's Hernàn Santa Cruz were among the most influential and active members. It is sometimes said that the educational backgrounds or professional experiences of widely traveled men like Chang and Malik "westernized" them, but their performance in the Human Rights Commission suggests something rather different. Not only did each contribute significant insights from his own culture, but each possessed an exceptional ability to understand other cultures, and to "translate" concepts from one frame of reference to another. Those skills, which can hardly be acquired without substantial exposure to traditions other than one's own, are indispensable for effective cross-cultural collaboration and were key to the adoption of the Declaration without a single dissenting vote in 1948.

The Declaration itself was based on extensive comparative study. The first draft, prepared by the U.N. Secretariat, was accompanied by a 408-page document showing the relationship of each article to provisions of the world's existing and proposed constitutions and declarations. When the Human Rights Commission's second draft was submitted to U.N. members for comment, responses were received from a group of nations that included Brazil, Egypt, India, Mexico, and Pakistan, South Africa, Sweden, and the United States.

Among the fifty-eight Member States represented on the U.N. General Assembly's committee which reviewed the near-final draft in the fall of 1948, there was even greater cultural and ideological diversity. This Committee on Social, Cultural and Humanitarian Affairs (known as the Third Committee) was chaired by Charles Malik. It included six members from Asia, four from the African continent (Egypt, Ethiopia, Liberia, and South Africa), plus the large Latin American contingent. Six of the "European" members belonged to the communist bloc; Islamic culture was strong in eleven; and four had large Buddhist populations. Over the course of more than a hundred meetings, the members of this large committee went over every word of the draft. Each country's representatives were given, and most of them enthusiastically seized, the opportunity to participate.

At the end of this process, Charles Malik could justly say of the Universal Declaration that "All effective cultures in the world had a creative hand in the shaping of the document...." As Malik put it, "The genesis of each article, and each part of each article, was a dynamic process in which many minds, interests, backgrounds, legal systems and ideological persuasions played their respective determining roles."¹⁰

⁹ See also Philip Alston, "The Universal Declaration at 35: Western and Passe or Alive and Universal?," *International Commission of Jurists Review* 30 (1983) 60, 61; and Johannes Morsink, *The Universal Declaration of Human Rights: Origins, Drafting and Intent* (Philadelphia: University of Pennsylvania Press, 1999), especially the concise summary of the drafting process in pp. 1-12.

¹⁰ Charles Malik, "Introduction," in O. Frederick Nolde, *Free and Equal: Human Rights in Ecumenical Perspective* (Geneva: World Council of Churches, 1968), 12.

It was, of course, true that much of the world's population was not represented in the U.N. in 1948. Large parts of Africa and Asia in particular remained under colonial rule. The defeated Axis powers, Japan, Germany and their allies, were excluded. On the other hand, subsequent actions by the non-represented countries suggest that cultural "diversity" has been greatly exaggerated where basic human goods are concerned. Most new nations adopted constitutions resembling the Universal Declaration as soon as they gained independence. Later, nearly all of these countries ratified the two 1966 Covenants based on the Declaration. In 1993, virtually all countries in the world participated in the adoption of the Vienna Human Rights Declaration which reaffirms the Universal Declaration. It is hard to dismiss this overwhelming endorsement of the principles of the Declaration as a mere vestige of the colonial mentality.

It is unlikely that any other political document in history has ever drawn from such diverse sources, or received the same worldwide, sustained consideration and scrutiny as the Declaration underwent over its two years of preparation. Despite all the wrangling that occurred over specifics, moreover, there was remarkably little disagreement regarding its basic substance. At every stage, even the Communist bloc, South Africa, and Saudi Arabia voted in favor of most of the articles when they were taken up one by one. The biggest battles were political, occasioned by Soviet concerns to protect their national sovereignty.

But what of the second objection mentioned above—the fact that several key ideas in the Declaration were initially described as rights in early modern Europe? On this point, the findings of a UNESCO philosophers' committee that included Jacques Maritain and University of Chicago philosopher Richard McKeon, are instructive. After surveying leading philosophers and religious thinkers the world over, the UNESCO group discovered to its surprise that a few basic practical concepts of humane conduct were so widely shared that they "may be viewed as implicit in man's nature as a member of society."¹¹ Freedom, dignity, tolerance, and neighborliness, they found, were highly prized in many cultural and religious traditions.

Nevertheless, the elaboration of these concepts as "rights" was a relatively modern, and European, phenomenon. So, does that give human rights a genetic taint that prevents them from being "universal"? Surely, their origin ought not to be decisive. The question should be not who had the idea first, but whether the idea is a good one; not where the idea was born, but whether it is conducive to human flourishing. Moreover, if a legal-political idea originated in one country but was widely adopted and internalized elsewhere, for how long and in what sense does it still "belong" to its country of origin? Do not all vibrant, living cultures constantly borrow from one another?

Consider the civil-law tradition which originated in ancient Rome. That tradition was in 1948, and remains, the most widely distributed legal tradition in the world.¹² The form and style of the Declaration gives it a familial resemblance, not only to rights declarations in many continental European constitutions, but to the constitutions and charters that had appeared or were soon to appear in many Latin American, African and Asian countries. Does that make all these instruments Roman? The French Civil Code of 1804 was widely copied by newly independent peoples in Latin America who admired its clarity and were inspired by its consolidation of a Revolution which had abolished the old unequal statuses of feudalism. Does that make the law of all those countries French?

And what does the term "Western" mean anyway, if it is more than an epithet? The majority of the U.N.'s membership in 1948, perhaps as many as thirty-seven countries, might have been described as "Western" in the sense of being influenced by Judeo-Christian traditions and Enlightenment thought. But how much sense does it make to lump together under a single label a group that comprises Latin

¹¹ Richard P. McKeon, "The Philosophic Bases and Material Circumstances of the Rights of Man," in *Human Rights: Comments and Interpretations* (New York: Columbia University Press, 1949), 45.

¹² See, Mary Ann Glendon, Michael Gordon, and Christopher Osakwe, *Comparative Legal Traditions*, 2d ed. (St. Paul, Minn.: West, 1994), 58-62

Americans, North Americans, East and West Europeans, Australians and New Zealanders? By the same token, such broad concepts as "Asian" or "Islamic" values are not very informative, given the great variety within traditions.¹³ As the Chinese member of the first Human Rights Commission, P.C. Chang, observed long ago, "Culturally, there are many 'Easts' and many 'Westes'; and they are by no means all necessarily irreconcilable."¹⁴

2. How can there be Universal Rights in Diverse Cultures?

Let us now turn to a more sophisticated version of the cultural-relativism critique. Assume that the UNESCO philosophers were right that a few basic norms of decent human behavior are very widely shared. Even if that is so at a general level, different nations and cultures attach quite different weights to these norms. Moreover, different political and economic conditions affect each nation's ability to bring human rights principles to life. That being so, what sense does it make to speak of universality?

That version of the cultural-relativism critique rests on a false premise shared by many rights activists and rights skeptics alike. It is the assumption that universal principles must be implemented in the same way everywhere. The Declaration's framers, however, never envisioned that its "common standard of achievement" would or should produce completely uniform practices.¹⁵ P. C. Chang stressed that point in his 9 December 1948 speech to the General Assembly urging adoption of the Declaration. He deplored that colonial powers had tried to impose on other peoples a standardized way of thinking and a single way of life. That sort of uniformity could only be achieved, he said, by force or at the expense of truth. It could never last.¹⁶ Chang and his colleagues on the drafting committee expected the Declaration's rights would be inculcated in various ways, and that over time the corpus of human rights would be enriched by these varied experiences.

The framers of the Universal Declaration also knew it was neither possible nor desirable for the Declaration to be frozen in *time*. They never claimed to have produced the last word on human rights. They expected that new rights would emerge in the future as they had in the past, and that old rights might be reformulated. That did not mean, however, that interpretation was up for grabs. They tried to provide the Declaration with safe passage through such transitions by giving it an interpretive matrix: freedom and solidarity, linked to a thick concept of personhood, and grounded in dignity.

The framers' approach was remembered by at least one distinguished international lawyer on the document's thirty-fifth anniversary in 1983. Philip Alston wrote on that occasion, "The Declaration does not purport to offer a single unified conception of the world as it should be nor does it purport to offer some sort of comprehensive recipe for the attainment of an ideal world. Its purpose is rather the more modest one of proclaiming a set of values which are capable of giving some guidance to modern society in choosing among a wide range of alternative policy options."¹⁷

By the 1970s, however, the original understanding of the Declaration was largely forgotten. And what oblivion had not erased, opportunism was eroding. The abstentions by South Africa and Saudi Arabia from the final vote approving the Declaration had been early warnings of more trouble ahead. South Africa had objected, among other things, to the word "dignity", apparently fearing its implications for the apartheid system it was then constructing. And Saudi Arabia had claimed that some of the so-called universal rights,

¹³See Amartya Sen's illuminating reflections on universality and pluralism, in "Our Culture, Their Culture," *The New Republic*, April 1, 1996, 27.

¹⁴P. C. Chang, *China at the Crossroads: The Chinese Situation in Perspective* (London: Evans, 1936), 124-25.

¹⁵Jacques Maritain, "Introduction" in *Human Rights: Comments and Interpretations*, UNESCO 00. (New York: Wingate, 1949), 16.

¹⁶P. C. Chang's speech may be found in U.N. General Assembly, 182d Plenary Session, December 10, 1948, Summary Records, p. 895.

¹⁷Philip Alston, "The Universal Declaration at 35," 60, 69.

particularly the right to change one's religion, were really just "Western" ideas. In 1948, those were isolated claims. But no sooner was the Declaration adopted than the Cold War antagonists pulled apart and politicized its provisions. That set the stage for further mischief. In 1955, the charge that some rights represented "Western" neo-colonialism resurfaced with particular vehemence at the Bandung conference, where the "nonaligned" nations found unity of a sort in shared resentment of the dominance of a few rich and powerful countries in world affairs.

3. The Deconstruction Derby

Over the 1960s and 1970s, the Declaration's framers, one by one, were departing from the world stage. The U.N. grew into an elaborate bureaucracy with more than 50,000 employees. Its specialized agencies become closely intertwined with the nongovernmental organizations that proliferated as the international human rights movement gained ground in the 1960s and 1970s. That movement in turn was deeply affected by the ideas about rights that predominated in the United States in those days.¹⁸ The movement, like the Declaration itself, attracted many persons and groups who were more interested in harnessing its moral authority for their own ends than in furthering its original purposes.

Another important development, set in motion by the Cold War antagonists, was the nearly universal habit of reading the Declaration in the way that Americans read the Bill of Rights, that is, as a string of essentially separate guarantees. Its dignity-based language of rights began to be displaced by the more simplistic kinds of rights talk that were then making great inroads on political discourse in the United States. Several features of that new, hyper-individualistic dialect had the potential to wreak havoc with the Declaration: rights envisioned without individual or social responsibilities; one's favorite rights touted as absolute with others ignored; the rights-bearer imagined as radically autonomous and self-sufficient; the trivialization of core freedoms by special interests posing as new rights.¹⁹

Thus, ironically, the charge of cultural imperialism has more credibility than it had in 1948. The global spread of hyper-libertarian, radically individualistic, sound-bite rights ideas has rendered the contemporary international human rights project more vulnerable to the label of "Western" than the Declaration ever was. Launched as a commitment by the nations to compete in advancing human freedom and dignity, the Declaration is now in danger of becoming what its critics have always accused it of being—an instrument of neo-colonialism!

For decades, the seamlessness of the Declaration has been ignored by its professed supporters as well as by its attackers. By isolating each part from its place in the overall design, the now-common misreading of the Declaration promotes misunderstanding and facilitates misuse. Nations and interest groups ignore the provisions they find inconvenient and treat others as trumps. A major casualty has been the Declaration's insistence on the links between freedom and solidarity, just at a time when affluent nations seem increasingly to be washing their hands of poor countries and peoples.

For examples of deconstruction in operation, one could do no better than to eavesdrop on the rights babble of the big U.N. conferences of the 1990s. At first glance, the U.N. might seem to be an unlikely forum for the pursuit of law reform. But its agencies and conferences have attracted numerous special

¹⁸ See generally, Mary Ann Glendon, *Rights Talk: The Impoverishment of Political Discourse* (New York: Free Press, 1991) (especially Chapter 6); Anthony Lester, "The Overseas Trade in the American Bill of Rights," *Columbia Law Review* 88 (1988) 537.

¹⁹ See generally, Glendon, *Rights Talk*. On the need for care in accepting new rights, see Philip Alston, "Conjuring up New Rights: A Proposal for Quality Control," *American Journal of International Law* 78 (1984) 607.

interest groups whose agendas have trouble passing muster in ordinary domestic political processes. Over the years, lobbyists of various sorts have acquired considerable influence in the U.N. bureaucracy, whose processes are even less transparent than those of U.S. administrative agencies.

Thus was the stage set for the U.N. and its conferences to become offshore manufacturing sites where the least popular (or least avowable) ideas of special interest groups could be converted into "international norms." These norms, though technically lacking the status of fundamental rights, could then be portrayed at home as universal standards, and imposed on poor countries as conditions for the receipt of aid.

At the U.N.'s 1995 Women's Conference in Beijing, for example, strenuous efforts were made to advance a new human rights paradigm--mainly by representatives from affluent countries. In her speech to a plenary session on the second day of the conference, U.S. First Lady Hillary Rodham Clinton gave high visibility to a misleading slogan. "If there is one message that echoes forth from this conference," she asserted, "it is that human rights are women's rights, and women's rights are human rights."²⁰ The statement was half true, but only half true. Human rights do belong to everyone. But not every right that has been granted to women by a particular nation-state has gained the status of a human right. The slogan was mainly aimed at universalizing extreme, American-style abortion rights in a world where few countries, if any, go as far as the United States and China in permitting abortions of healthy, viable unborn children.

That there might be some such demolition derby in the Declaration's future was foreseen long ago by Richard McKeon. McKeon realized what every lawyer knows: practical agreements such as those reached by the U.N. member states in 1948 are achieved only at the price of a certain ambiguity. The framers knew that the same generality that made agreement possible rendered the document vulnerable to misunderstanding and manipulation. In his UNESCO report, McKeon pointed out that different understandings of the meanings of rights usually reflect divergent concepts of man and of society which in turn cause the persons who hold those understandings to have different views of reality. Thus, he predicted that "difficulties will be discovered in the suspicions, suggested by these differences, concerning the tangential uses that might be made of a declaration of human rights for the purpose of advancing special interests."²¹ That was a philosopher's way of saying, "Watch out, this whole enterprise could be hijacked!"

In sum, the human rights project, launched as a multicultural commitment to compete in advancing freedom and dignity, is now in danger of becoming what its enemies and critics have always accused it of being—an instrument of "Western" cultural imperialism.

That irony did not escape the attention of Calcutta-born, Cambridge economist, Amartya Sen. In 1994, just before the U.N.'s Cairo Conference on Population and Development, Sen warned in the New York Review of Books that the developed nations were exhibiting a dangerous tendency to approach population issues with a mentality that "treats the people involved not as reasonable beings, allies faced with a common problem, but as impulsive and uncontrolled sources of great social harm, in need of strong discipline."²² Sen, who won the Nobel Prize for his works on inequality and world hunger, charged that international policy makers, by giving priority to "family planning arrangements in the Third World countries over other commitments such as education and health care, produce negative effects on people's well-being and reduce their freedoms."²³ In short, the whole range of human rights of poor people is at

²⁰ Steven Mufson, "First Lady Critical of China, Others on Women's Rights," *Washington Post*, September 6, 1995, p. A1.

²¹ Richard McKeon, "The Philosophic Bases and Material Circumstances of the Rights of Man," in *Human Rights: Comments and Interpretations* (New York: Columbia University Press, 1949), 35, 36.

²² Amartya Sen, "Population: Delusion and Reality," *New York Review of Books*, September 22, 1994, 62.

²³ *Ibid.* 71; see also, Reed Boland, "The Environment, Population, and Women's Human Rights," *Environmental Law* 27 (1997) 1137.

risk when special interests are dressed up as universal rights.

The good news is that as the U.N. enters a period of austerity, the era of big conferences like Cairo and Beijing is probably drawing to a close. The bad news is that the same economic pressures that are putting a damper on huge international gatherings, however, may aggravate the danger of capture of U.N. agencies by well-financed special interests. A case in point is CNN founder Ted Turner's \$1 billion "gift" to the U.N. announced in the fall of 1997. Many who look to the U.N. for leadership in humanitarian aid were overjoyed when Mr. Turner announced that his donation was to help "the poorest of the poor."²⁴ Paid out in installments of \$100 million a year for ten years, this infusion of funds would have ranked behind the annual contributions of only the U.S., Japan, and Germany.

The news seemed too good to be true. It was. It soon appeared that the U.N. would not have control over the funds. Rather, its agencies would be required to submit proposals for approval by a foundation headed by a man Mr. Turner chose because "he thinks as I do."²⁵ The man designated to have the chief say in allocating the Turner millions is former U.S. State Department official Timothy Wirth who spearheaded the aggressive U.S. population control agenda at the 1994 Cairo conference. Wirth has been so zealous in advocating population control that he has even praised China, with its coercive one-child-per-family policy, for its "very, very effective high-investment family planning."²⁶ As for Mr. Turner, he told a California audience in 1998, that in the post-Cold War world, "The real threat is no longer an army marching on us, it's people infiltrating us, you know, people that are starving."²⁷

As its details have unfolded, Mr. Turner's gesture looks less like a gift and more like a take-over bid aimed at U.N. agencies with privileged access to vulnerable populations. The next few years are thus likely to be a time of testing for the U.N. if its prestige and organizational resources are not to be, literally, for sale.

As memories fade about why the nations of the world determined after World War II to affirm certain basic rights as universal, efforts to deconstruct the Universal Declaration and remake it nearer to the heart's desire of this or that special interest group will continue. Whether the relatively rich and complex vision of human rights in the Universal Declaration can withstand the combined stresses of aggressive lobbying, heightened national and ethnic assertiveness, and the powerful, ambiguous forces of globalization, is impossible to foresee. Not only U.N. agencies, but the governments of several liberal democracies have become implicated in breaking down the connections among its indivisible rights and deconstructing its core principle, human dignity.

The Challenge of Human Rights

The contest for control of the meaning of the Declaration forcefully reminds us that the framers of the Universal Declaration left the human rights movement with a problem. As John Paul II put it in his Address to the Vatican Diplomatic Corps in January 1989, "[T]he 1948 Declaration does not contain the anthropological and moral bases for the human rights that it proclaims"(7). How, then, can one handle the problem of reconciling tensions among the various rights, or the related problem of integrating new rights from time to time?

Those problems are serious, and have led some thoughtful persons to conclude that the Declaration is hopelessly incoherent. The late Michel Villey, for example, maintained that, "Each of the so-called human

²⁴ Betsy Pisik, "Gift Keeps on Giving," *Washington Times*, January 19, 1998, p. A1.

²⁵ Barbara Crossette, "Turner Picks State Dept. Official to Allocate UN Fund," *International Herald Tribune*, November 21, 1997, 4; Colin Woodard, "Ted Turner Gift Poised to Boost UN," *Christian Science Monitor*, April 22, 1998, 1.

²⁶ Quoted in Jeffrey Gedmin, "Clinton's Touchy-Feely Foreign Policy," *Weekly Standard*, May 13, 1996, 19, 22.

²⁷ Ann Bardach, "Turner in 20007," *New Yorker*, November 23, 1998, 36, 37.

rights is the negation of other human rights, and when practiced separately generates injustices.”²⁸ Alasdair MacIntyre argues that different rights, borrowed from different traditions, often rest on different, and incommensurable, moral premises.²⁹

These problems were not overlooked by Maritain and his colleagues. Maritain noted that, “Where difficulties and arguments begin is in the determination of the scale of values governing the exercise and concrete integration of these various rights.”³⁰ The Declaration, he went on, would need some “ultimate value whereon those rights depend and in terms of which they are integrated by mutual limitations.” That value, explicitly set forth in the Declaration, is human dignity. But as time went on, it has become painfully apparent that dignity possesses no more immunity to hijacking than any other concept. One need only think of current defenses of active euthanasia in terms of “the right to die with dignity.” (There is no end, it seems, of pseudo-rights that the stronger are eager to confer upon the weaker whether the latter are willing or not.)

The shift from nature to dignity in modern thinking about the foundations of human rights thus entails a host of difficulties. The common secular understandings are that human beings have dignity because they are autonomous beings capable of making choices (Kant), or because of the sense of empathy that most human beings feel for other sentient creatures (Rousseau). But the former understanding has alarming implications for persons of diminished capacity, and the latter places all morality on the fragile basis of a transient feeling. Most believers, for their part, would say that dignity is grounded in the fact that human beings are made in the image and likeness of God, but that proposition is unintelligible to nonbelievers.

Moreover, the path from dignity to rights is not clear and straight, even for believers. Brian Benestad has pointed out that the term “dignity of the human person” has two different connotations in Christian teaching—“[it] is both a given and an achievement or an end to be gradually realized.”³¹ The Catholic Catechism, he notes, begins its discussion of morality with this quotation from Pope Leo the Great: “Christian, recognize your dignity, and now that you share in God’s own nature, do not return by sin to your former base condition.” But if dignity is a quality to be achieved by strenuous effort to overcome sin and practice virtue, then it is not altogether clear that the dignity of the rights claimant is an adequate basis for human rights. Not every rights claimant, obviously, has made strenuous effort to overcome sin. From a Christian point of view, the resolution of this dilemma may be that human rights are grounded in the obligation of everyone to perfect one’s own dignity which in turn obliges one to respect the “given” spark of dignity of others whatever they may have done with it. In other words, it may be our own quest for dignity (individually and as a society) that requires us to refrain from inflicting cruel punishments on criminals, or from terminating the lives of the unborn and others whose faculties are undeveloped or dormant.

In that light, the drafters of the U.N. Charter were prudent to say that human rights rest upon a “faith” in human dignity. It would be a mistake, however, to leap from that proposition to the notion that this faith is merely an act of will, an arbitrary choice. All in all, one may say of “dignity” in the Universal Declaration what Abraham Lincoln once said about “equality” in the Declaration of Independence: it is a hard nut to crack. The framers of the Universal Declaration were far from naive about the difficulties that lay ahead. That is evident from many statements in which they acknowledged the priority of culture over law. Though Maritain was not, strictly speaking, a framer, he said it best. Whether the music played on

²⁸ Michel Villey, *Le droit et les droits de l’homme* (Paris: Presses Universitaires de France, 1983), 13.

²⁹ Alasdair MacIntyre, *After Virtue*, 2d ed. (Notre Dame, Ind.: University of Notre Dame Press, 1981).

³⁰ Jacques Maritain, “Introduction” in *Human Rights: Comments and Interpretations*, UNESCO ed. (London & New York: Wingate, 1949), 9, 15-16.

³¹ Brian Benestad, “What Do Catholics Know about Catholic Social Thought?” in *Festschrift for George Kelly* (Christendom Press, forthcoming).

the Declaration's thirty strings will be "in tune with, or harmful to, human dignity," he wrote, will depend primarily on the extent to which a "culture of human dignity develops."³²

If Maritain, Eleanor Roosevelt, Charles Malik, René Cassin and others who held this view were right, then a great challenge faces the world's religions, for religion is at the heart of culture. Ultimately it will be up to the religions to demonstrate whether they are capable of motivating their followers to fulfill their own calling to perfect their own dignity, and in so doing to respect the dignity of fellow members of the human family.³³

³²Jacques Maritain, "Introduction" at 16.

³³Giorgio Filibeck, "Universal Religions and the Universality of Human Rights," Presentation at the Harvard Law School World Alumni Congress Panel on "Religion and Human Rights," held at the Islamic Center of Rome, Italy, June 11, 1998.